

ELECTRONIC SURVEILLANCE IN WASHINGTON

Outline maintained by

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June 1, 2004

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"I'VE HAD THE MOST INTIMATE EXPERIENCE THAT I'M DYING TO SHARE,
BUT FIRST, IS THAT A PENDANT OR A MIKE?"

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I. INTRODUCTION

A. *Topics Covered In This Outline*

Electronic surveillance includes one party consent recordings, pen registers, trap & trace, video surveillance, radio transmitters, infrared devices, GPS technology, e-mail interception, instant messaging interception, and voice mail interception. These tools are often used in the **toughest cases**, yet result in an extremely high conviction rate. They also are very successful in eliminating bogus cases.

The first nine sections of this outline discuss different aspects of audio interception and recording of conversations and communications. The remaining sections discuss other forms of electronic surveillance, organized in alphabetical order. Finally, at the end you will find a section on sealing court files and some useful appendices.

B. *General Observations About Electronic Surveillance*

Most important: Federal law sets the minimum requirements for electronic surveillance. State law can be more restrictive. In many areas, Washington is more restrictive.

"[L]aw enforcement officers . . . should be permitted to use electronic surveillance techniques for the overhearing or recording of wire and oral communications uttered in private without the consent of the parties." American Bar Association Standards, Electronic Surveillance (1971).

"An electronic recording will many times produce a more reliable rendition of what a defendant has said than will the unaided memory...." *United States v. White*, 401 U.S. 745, 753, 91 S. Ct. 1122, 1126, 28 L. Ed. 2d 453 (1971).

The Fourth Amendment "protects people, not places." *Katz v. United States*, 389 U.S. 347, 351, 88 S. Ct. 507, 511, 19 L. Ed. 2d 576 (1967).

"The right of privacy under Const. art. I, § 7 is 'not confined to the subjective privacy expectations of modern citizens who, due to well publicized advances in surveillance technology, are

learning to expect diminished privacy in many aspects of their lives.”” *State v. Young*, 123 Wn.2d 173, 181-182, 867 P.2d 593 (1994), *quoting State v. Myrick*, 102 Wn.2d 506, 511, 688 P.2d 151 (1984).

C. If You Only Remember One Thing...

Washington courts are very protective of citizens' privacy. Privacy issues are often implicated when law enforcement uses any form of electronic surveillance. Washington's one party consent law is among the most restrictive in the nation. Most issues in this area (both legal and policy) involve the non-consensual acquisition of "private" communications. This is a highly sensitive area because it involves both fear of "big brother" and concerns for privacy.

FOR THESE REASONS, THE CARDINAL RULE IN ELECTRONIC SURVEILLANCE IS "GET A PAPER!!"

II. INTERCEPTION OF COMMUNICATIONS OR CONVERSATIONS, GENERAL LEGAL FRAMEWORK

A. Common Terms

1. One party consent recording/participant monitoring/wired agent

Use of a concealed transmitter or recorder secreted on one party to a conversation (or in the presence of one party, with that party's knowledge) so as to monitor, transmit, and/or record conversations involving that person with that person's consent.

2. Eavesdropping, wiretapping, bugging

Intercepting communication without knowledge of any participant. Generally prohibited in Washington. See section V., *infra*.

B. Fourth Amendment

No Fourth Amendment search occurs when one party to a private conversation consents to interception and recording of that conversation. *United States v. White*, 401 U.S. 745, 91 S. Ct. 1122, 28

L. Ed. 2d 453 (1971).

Courts have consistently held there is no constitutionally reasonable expectation of privacy in a conversation if one party to that conversation chooses to reveal its substance. *United States v. White*, 401 U.S. 745, 91 S. Ct. 1122, 28 L. Ed. 2d 453 (1971) (defendant had no constitutionally protected expectation that a person with whom he was conversing would not then or later reveal the conversation). See *Rathbun v. United States*, 355 U.S. 107, 78 S. Ct. 161, 2 L. Ed. 2d 134 (1957); accord, *State v. Jennen*, 58 Wn.2d 171, 361 P.2d 739 (1961).

C. Washington Constitution, Article I, § 7

"No person shall be disturbed in his private affairs, or his home invaded, without authority of law."

Broader than Fourth Amendment in coverage - for example, covers garbage searches, thermal imaging, phone records, pen registers.

"[T]he language and the history of RCW 9.73 make it clear the legislature's primary purpose . . . was the protection of the privacy of individuals from public dissemination, even in the course of a public trial, of illegally obtained information." *State v. Wanrow*, 88 Wn.2d 221, 559 P.2d 548 (1977).

Article I, § 7 is not offended by interception or disclosure of conversations where one party consents in advance because there is no constitutionally based expectation of privacy in the conversation. *State v. Corliss*, 123 Wn.2d 656, 663-664, 870 P.2d 317 (1994);, *State v. Salinas*, 119 Wn.2d 192, 197, 829 P.2d 1068 (1992).

RCW 9.73 does not create a constitutional right. There is no constitutional expectation of privacy in a conversation that one person has consented to being recorded by police. *State v. Clark*, 129 Wn.2d 211, 916 P.2d 384 (1996); *State v. Cunningham*, 93 Wn.2d 823, 613 P.2d 1139 (1980).

D. Federal Statutes

1. One Party Consent interception/recording not governed by any federal statute

Federal law enforcement agencies have adopted self-governing

procedures similar to our drug case one party consent statute, RCW 9.73.230, except that there is no court review.

2. 18 U.S.C. § 2510 *et. seq.*

Commonly known as Title III of the Omnibus Crime Control and Safe Streets Act of 1968, or "Title III." Governs wiretaps and bugs. Later amended to include regulation of data and digital communications (called electronic communications) and including communications using fax machines and digital-display pagers.

- a. Covers any "intercept" of "the contents of any wire, electronic, or oral communication."
- b. Establishes uniform, minimum and detailed procedures. States must comply with this federal law, at a minimum.
- c. Expressly does not regulate:
 - (1) Wired agents (one party consent) - 18 U.S.C. § 2511(2)(c) and (d).
 - (2) Pen registers - no "intercept."
 - (3) Trap and Trace - no "intercept."
 - (4) Tracking Devices (GPS/radio beacons/beepers/bird dogs) - exempted by 18 U.S.C. § 2510(12)(C).
- d. Provides that states may authorize wiretaps and bugs, but must at a minimum "conform" to standards and procedures of federal act. Washington has not done so.
- e. Severe penalties for violation of these statutes, including criminal, civil, administrative sanctions and suppression of evidence.

3. 18 U.S.C. § 2701 *et. seq.*

Governs searches of e-mail. *See* section XII., *infra*.

E. Washington Statute, The Privacy Act, RCW Chapter 9.73

1. General Prohibition

RCW 9.73.030(1): It shall be unlawful for any person or the state to intercept or record:

- a. Any private communication transmitted by telephone, telegraph, radio or other device without first obtaining the consent of all the participants in the communication.
- b. Any private conversation without first obtaining the consent of all the participants in the conversation.
- c. "Private" means "secret...intended only for the persons involved...not open or in public." *State v. Flora*, 68 Wn. App. 802, 806, 845 P.2d 1355 (1992).
- d. Factors. Determining whether a conversation is private, courts consider several non-exclusive factors, including: 1) location of the conversation; 2) presence or potential presence of a non-participant; 3) role of the non-consenting party and his or her relationship to the consenting party (willingness to talk with stranger); and 4) duration and subject matter of the conversation. *See State v. Clark*, 129 Wn.2d 211, 916 P.2d 384 (1996).
- e. "Conversation" does not include sounds of an event. *State v. Smith*, 85 Wn.2d 840, 540 P.2d 424 (1975), where a police officer was convicted of murder thanks in large part to a recording of the murder made by the victim. Even though the tape contained conversation between the officer and the victim in addition to the shooting, the Supreme Court characterized the tape as the sounds of the event, not a private conversation. The entire tape was admitted into evidence. Perhaps this is best analyzed as the gory murder exception.

2. Numerous statutory exceptions to the general prohibition, section IV., *infra*.

3. Usual legal issue

Can the highly probative, oftentimes compelling, electronic surveillance information be used as evidence? The answer usually depends upon the technical, electronic procedures used to obtain the evidence, and whether the required legal procedures were followed.

III. PENALTIES FOR VIOLATING RCW 9.73

A. *Recording Not Admissible*

1. RCW 9.73.050 - inadmissible in any civil or criminal case in Washington.
 - a. Inadmissible for any purpose, including impeachment. *State v. Faford*, 128 Wn.2d 476, 910 P.2d 447 (1996), *reconsideration denied*.
 - b. But see *State v. Baird*, 83 Wn. App. 477, 922 P.2d 157 (1996), *review denied*, 131 Wn.2d 1012 (1997) (defendant's constitutional rights may supersede statute). See section IX. H., *infra*, for discussion.
2. Exceptions: With permission of person whose rights were violated, recording is admissible in 1) damage action under RCW 9.73; and 2) criminal case involving potential jeopardy to national security.
3. Okay to use legal federal recordings made within Washington borders to establish probable cause for search warrant or one party consent recording. *State v. O'Neill*, 103 Wn.2d 853, 700 P.2d 711 (1985). But can't use legal federal recordings at trial. *State v. Williams*, 94 Wn.2d 531, 617 P.2d 1012 (1980).
Distinction: The recordings are inadmissible, but not illegal.
4. Illegal recording does not prevent a witness from testifying about his/her independent recollection of facts learned before the illegal recording, even if same facts are discussed in the illegally recorded conversation. *State v. Johnson*, 40 Wn. App. 371, 699 P.2d 221 (1985) (where taped witness interview did not comply with RCW 9.73 requirements).

5. *Fact* that illegal recording was made also excluded. *State v. Cramer*, 35 Wn. App. 462, 465, 667 P.2d 143 (1983).

B. Witness Recollection About Recorded Conversation Not Admissible

1. No one can testify from memory about the conversation that was illegally intercepted or recorded. Not the technicians, not even the undercover officer, CI or other consenting person (CP).² *State v. Fjermestad*, 114 Wn.2d 828, 791 P.2d 897 (1990).
2. Exception: an "innocent" participant who was not aware of the illegal interception or recording. *See State v. Grant*, 9 Wn. App. 260, 511 P.2d 1013 (1973), *review denied*, 83 Wn.2d 1003 (1973), *cert. denied*. 419 U.S. 849 (1974).
3. Good faith not likely an exception: Courts considering police agency authorized recordings, issued under RCW 9.73.210 and .230, have relied on police good faith effort to comply with the statute, combined with statutory language specific to agency authorized interceptions for evidence gathering or officer safety, to allow officers to testify about the intercepted event. *See* section VII. B. 3., *infra*. There is no similar statutory language pertaining to court ordered authorizations, and no court concluding that a court ordered authorization was inadequate has relied on good faith to "save" the evidence. **GET A PAPER!!!**

C. Witness Observations During Illegal Interception Not Admissible

1. No one who participated in the illegal interception or recording can testify about his/her visual observations. *State v. Fjermestad*, 114 Wn.2d 828, 791 P.2d 897 (1990); *State v. Salinas*, 121 Wn.2d 689, 853 P.2d 439, note 1 (1993).
2. Exception: an "innocent" participant who was not aware of the illegal interception or recording. *See State v. Grant*, 9 Wn. App. 260, 511 P.2d 1013 (1973), *review denied*, 83 Wn.2d 1003 (1973), *cert. denied*, 419 U.S. 849 (1974).

² Some consenting persons will be victims; others will be informants, accomplices, or witnesses, such as parents, school counselors, friends, etc. Use herein of the terms "consenting person" and "CP" refer to all these consenting persons.

3. Good faith not likely an exception: Courts considering police agency authorized recordings, issued under RCW 9.73.210 and .230, have relied on police good faith effort to comply with the statute, combined with statutory language specific to agency authorized interceptions for evidence gathering or officer safety, to allow officers to testify about the intercepted event. *See* section VII. B. 3., *infra*. There is no similar statutory language pertaining to court ordered authorizations, and no court concluding that a court ordered authorization was inadequate has relied on good faith to “save” the evidence. **GET A PAPER!!!**

D. Automatic Standing

Defendant has automatic standing to object to evidence from conversations intercepted in violation of RCW 9.73, even though the defendant was not a participant in the unlawfully intercepted or recorded conversation. *State v. Williams*, 94 Wn.2d 531, 617 P.2d 1012 (1980); *State v. Porter*, 98 Wn. App. 631, 634, 990 P.2d 460 (1999), *review denied* 140 Wn.2d 1024 (2000).

Reason: The legislature's primary purpose in enacting these statutes was to protect the privacy of individuals by prohibiting public dissemination of illegally obtained information. *State v. Wanrow*, 88 Wn.2d 221, 233, 559 P.2d 548 (1977); *State v. Cramer*, 35 Wn. App. 462, 667 P.2d 143 (1983).

E. Police May Not Exploit Illegal Civilian Interception

State v. Faford, 128 Wn.2d 476, 910 P.2d 447 (1996), *reconsideration denied*, significantly expanded the scope of suppression for civilian violations of RCW 9.73. Faford's cordless phone conversations were monitored by a neighbor who was able to corroborate discussions of drug dealing by his visual observations. The police used the neighbor's statements as the basis to conduct a knock and talk in which they got Faford's consent to search the shed where the grow was located. Although the Supreme Court acknowledged that the "fruit of the poisonous tree" doctrine doesn't normally apply to private searches unless the police have instigated the search in some way, the Court held the police here obtained Faford's consent "solely through the knowing exploitation" of the illegal monitoring, and "to permit the State to introduce evidence exclusively and directly flowing from a

privacy act violation would render any privacy protection illusory and meaningless." *Id.* at 489. The Court suppressed all the evidence seized from the shed, all testimony about the telephone conversations, and all the neighbor's visual observations.

F. Civil Action For Damages And Attorney's Fees

Actual damages including mental pain and suffering, or liquidated damages of \$100 per day, not to exceed \$1,000, plus reasonable attorney's fees and other litigation costs. RCW 9.73.060.

G. Gross Misdemeanor

RCW 9.73.080.

H. Law Enforcement's Dilemma: Dealing With Illegal Eavesdropping And Recording In Your Case

1. Attenuate the taint. Treat the information as an unreliable tip and begin investigating from there. Understand that the informant will not be able to be a witness unless the informant is testifying about unrelated observations *before* the illegality, or possibly after it and untainted by it. *See State v. Faford*, 128 Wn.2d 476, 910 P.2d 447 (1996), *reconsideration denied*.

Obvious note: if a serious violent crime is about to occur, you have to act on the basis of the illegally-obtained information and worry about the legal consequences later.

2. Where a victim or witness has violated or may have violated RCW 9.73:
 - a. Conflicting alternatives
 - (1) Witness may not be able to testify, and fruits may be inadmissible - could gut your case.
 - (2) If you listen to tapes to determine whether they violate RCW 9.73 and what they cover, you and your case may become tainted.
 - (3) Tapes may contain *Brady* material.

b. Suggested course of action

- (1) Place any recordings into evidence, but do not listen to them or have them transcribed.
- (2) Interview the witness to assess the extent of your problem. How many conversations? When? Who was recorded? Who was the primary speaker/provider of information? What was the general subject matter? *Do not elicit details of the subject matter!*
- (3) In the unlikely event that the potentially inadmissible information seems critical to your case, you or preferably a colleague will have to listen to the tape(s) or read a transcript to determine whether the case can go forward. If it can, but there was an illegal recording or interception material to the case, the person who listened or read must be disqualified from any further connection to the case. All inadmissible evidence must be held confidentially by that person to avoid tainting the investigation.
- (4) Take a statement from the witness that does not include inadmissible information.
- (5) Once your case is completed (investigative case report or certification of probable cause) consider listening to the tape(s) or reading a transcript, if you think you can do so without risking or tainting your case. You can assess whether there is *Brady* material and whether the tapes create problems for your case.
- (6) Disclose the existence of the tape(s) and anything you know about their contents to the defense. This should satisfy any *Brady* or other discovery obligation.
- (7) At trial, do not elicit any testimony by the

witness concerning the making of the recording, the contents of the conversation, or any other inadmissible matter.

- (8) Decide, perhaps based upon your assessment of your judge, whether you should inform the judge of the existence of the tapes before trial or leave it to the defense to make any motions they think appropriate.

- 3. Should you prosecute the witness?
 - a. Is there harm?
 - b. Is there bad motive?
 - c. Did the person know it was against the law?
 - d. If you don't intend to prosecute, consider not mentioning the possibility to the witness. Treat the person as a victim/witness, not as a target.
 - e. Your decision not to prosecute may be attacked at trial. Be prepared to justify it, perhaps even by calling a colleague or supervisor as a witness to explain how your office deals with RCW 9.73 violations and why you did not treat this as a crime.

IV. EXCEPTIONS TO REQUIREMENTS OF RCW 9.73

A. Conversations Held Not Private

- 1. Routine initial parts of a telephone call

Where CP³ asked to speak to another person. *Kadoranian v. Bellingham Police Department*, 119 Wn.2d 178, 829 P.2d 1061 (1992), *reversed on other grounds*; *State v. Jimenez*, 128 Wn.2d 720, 911 P.2d 1337 (1996).

³ See footnote 1.

2. Messages left on an answering machine

Privacy is waived when a person consents to the communication being recorded. *In re Marriage of Farr*, 87 Wn. App. 177, 940 P.2d 679 (1997), *review denied* 134 Wn.2d 1014 (1998).

3. Conversation of police officers occurring on duty on a public street

State v. Flora, 68 Wn. App. 802, 845 P.2d 1355 (1992); *Alford v. Haner*, 333 F.3d 972 (9th Cir. 2003).

4. Call to police station confessing crime

Reasoning applies in other situations: The caller could reasonably anticipate his conversation would be revealed to others. *State v. Bonilla*, 23 Wn. App. 869, 598 P.2d 783 (1979).

5. Calls to police demanding money from the city

The caller expected his calls to be revealed to others. *State v. Forrester*, 21 Wn. App. 855, 587 P.2d 179 (1978), *review denied*, 92 Wn.2d 1006 (1979).

6. Public meeting

Surreptitiously recorded statements of con man reporting glowing results from non-existent investments to a meeting of his investors, where minutes of the meeting were taken and distributed to investors. *State v. Slemmer*, 48 Wn. App. 48, 738 P.2d 281 (1987).

7. Street drug dealing - CAUTION

Not private, says *State v. Clark*, 129 Wn.2d 211, 916 P.2d 384 (1996) (Seattle's Operation Hardfall). **EXTREME CAUTION.** The only notable differences between *Clark* and *State v. Fjermestad*, 114 Wn.2d 828, 791 P.2d 897 (1990) (also an undercover drug sting case) are that *Fjermestad* involved street marijuana dealers and *Clark* involved street crack dealers, and in *Fjermestad* we didn't get a paper, but in *Clark* we did. **MESSAGE: GET A PAPER!!!**

B. Prior Authorization obtained

1. Court Order; felony crime with consent of one party, section VI., *infra*.

Upon probable cause, courts can issue an order authorizing interception, transmission, and recording of private communications or conversations when one party to the conversation or communication has consented to the interception. Very stringent requirements spelled out in RCW 9.73.090(2), (4), and (5), and RCW 9.73.120, .130, and .140.

2. Police Approved; Drug felony above mere possession with consent of one party, section VII., *infra*.

Upon probable cause, police commander or officer above rank of first line supervisor can authorize interception, transmission and recording of conversation or communication about felony drug crime above mere possession when one party to the conversation consents to the interception. RCW 9.73.210 and .230. Statute contains detailed requirements for written authorization.

3. Wiretaps and bugs, court order, section V., *infra*

Not admissible in evidence. RCW 9.73.050.

- a. May use for intervention only. RCW 9.73.040.
- b. Requires procedure similar to Title III but does not conform to Title III standards (therefore technically illegal).

a

C. Excluded By Statute Or Court Decision: No Court Order Necessary

1. Building security system used to record conversations of criminal trespassers, burglars.
RCW 9.73.110

2. Custodial Interrogation

- a. RCW 9.73.090(1)(b). No court order necessary for video and/or sound recordings of arrested persons, before their first appearance in court, but recording must include:
 - i. Police notice to arrestee that s/he is being recorded;
 - ii. Indication of beginning and ending times;
 - iii. Reading of arrestee's constitutional rights, must be at the beginning of the recording.
- b. Statutory language requires strict compliance with these requirements. However courts have found substantial compliance with i. and ii., above, acceptable where there is no allegation of police misconduct or editing.

Examples:

- i. Misreading of watch so that announced start time was an hour off, because error was not material and police otherwise substantially complied with statute. *State v. Demery*, 100 Wn. App. 416, 435, 997 P.2d 432 (2000), *reversed on other grounds*, 144 Wn.2d 753 (2001).
- ii. Failure to state starting time when other requirements met and no allegations of misconduct. *State v. Rupe*, 101 Wn.2d 664, 685, 683 P.2d 571 (1984), *reconsideration denied* 108 Wn.2d 734 (1987); *cert. denied*, 486 U.S. 1061 (1988) (recorded polygraph).
- iii. Failure to state ending time when other requirements met and no allegations of misconduct. *State v. Gelvin*, 43 Wn. App. 691, 695, 719 P.2d 580 (1986) (defendant videotaped during booking procedure. Court also noted that whether booking procedure constitutes "private" conversation is debatable).

- iv. Failure to state that recording is being made where surrounding circumstances surrounding demonstrate that defendant knew of recording (police reference to taping and tape recorder on table in front of defendant). *State v. Johnson*, 40 Wn. App. 371, 376-377, 699 P.2d 221 (1985), citing *State v. Jones*, 95 Wn.2d 616, 628 P.2d 472 (1981), and *State v. Rupe*, 101 Wn.2d 664, 685, 683 P.2d 571 (1984), reconsideration denied 108 Wn.2d 734 (1987), cert. denied, 486 U.S. 1061, (1988).
 - v. Mid-recording stop and re-start times not noted on tape, but fact of start/stop can be heard. *State v. Hutchinson*, 85 Wn. App. 726, 741 938 P.2d 336 (1997), reversed on other grounds, 135 Wn.2d 863, (1998), cert. denied, 525 U.S. 1157 (1999), affirmed on other grounds, 147 Wn.2d 197 (2002).
 - vi. But Note: Full *Miranda* warning must be included in the recording, or suppression results. *State v. Cunningham*, 93 Wn.2d 823, 613 P.2d 1139 (1980); *State v. Mazzante*, 86 Wn. App. 425, 936 P.2d 1206 (1997).
- c. Caution: Police station interview rooms. Many are now wired for video and sound recording. The equipment is often *not* visible to the naked eye. Both private matters (e.g. attorney-client consultation) and non-private matters (e.g. police questioning) can occur in these rooms. Remember that RCW 9.73.090(1)(b), discussed above, applies to both video and sound recordings of arrested persons. But, there is a strong argument that RCW 9.73.090(1)(b) does not apply if the conversations recorded are not private. See RCW 9.73.030 and section IV. A., *infra*. This argument has not been tested and is risky given the courts' bias against secret police recording. A conservative approach is to comply with the safe harbor offered by RCW 9.73.090(1)(b).

Query: Even if the court concluded that the matter intercepted was private (so audio interception, even without recording, would be governed by RCW 9.73.030), would courts approve police interview room video *monitoring* without recording, since RCW 9.73.090(1)(b) addresses only “recording?”

Practice Tip: Consider carefully researching this issue and possibly assisting police with a policy discussing use of suspect interview room; use of audio and video monitoring and/or recording equipment; and any notice to the suspect. Train all officers in the requirements of RCW 9.73.090(1)(b) (arrested persons) and RCW 9.73.030(3) (witnesses and victims).

3. E-mail and “chat” or instant messenger type communications

These are “private” within the meaning of the Privacy Act, but no court order is needed before the recipient-addressee can save and print the received messages because the sender implicitly consented to recording of the sent message. The nature of e-mail is such that, to be useful, it must be recorded in the recipient computer’s memory. The sender also implicitly consents to recording of “chat” or instant messaging communications where the software provider’s policy expressly warns users that their messages could be recorded or forwarded to others. *State v. Townsend*, 147 Wn.2d 666, 57 P.3d 255 (2002).

4. Extension phone plus consent

Listening to a telephone conversation on an extension phone with the consent of a party to the conversation. *State v. Bonilla*, 23 Wn. App. 869, 598 P.2d 783 (1979) (Reason: Not an interception for purposes of statute).

Note: Consent may no longer be required. See *State v. Christensen*, 119 Wn. App. 74, 79 P.3d 12 (2003) (and discussion of federal wiretap law and cases, below under “Speakerphone”).

5. Implied consent of all parties

- a. Key here is that clear notice of intent to record is given.
 - b. One party announces to all others that the communication is about to be recorded or transmitted *and* the announcement is recorded. RCW 9.73.030(3).
 - (1) Example: Message left on home answering machine. *In re Marriage of Farr*, 87 Wn. App. 177, 184, 940 P.2d 679 (1997), *review denied* 134 Wn.2d 1014 (1998).
 - (2) Example: “I’m recording it,” stated on tape by police negotiator speaking to barricaded suspect. *State v. Pejisa*, 75 Wn. App. 139, 876 P.2d 963 (1994), *review denied*, 125 Wn.2d 1015 (1995).
 - c. Recording by media in regular course of gathering news where recording device is readily apparent. RCW 9.73.030(4).
6. Incoming calls to police and fire stations, licensed emergency medical providers, emergency communication centers, and poison centers

RCW 9.73.090(1)(a) and *State v. Johnson*, 104 Wn.2d 179, 703 P.2d 1052 (1985). Caution on setting up a target suspect to call a cold phone in the station.

7. Speakerphone to covertly listen

Parent listening to conversation of child, without child’s knowledge, through use of a speakerphone function at the base of a cordless phone. *State v. Christensen*, 119 Wn. App. 74, 79 P.3d 12 (2003))(Reason: No device used to transmit the conversation).

Note: *Christensen* holds there is no functional difference between a speakerphone, tipped receiver, or telephone extension. However, without discussion *Christensen* goes further than the *Bonilla* and *Corliss* cases by approving secret interception, without the consent of any party to the conversation.

Query: Under this analysis can police now listen by speakerphones or telephone extensions without the consent of any party? **USE CAUTION!!** This action may violate federal wiretap law.

18 U.S.C. § 2510 defines “electronic device” differently than Washington’s Privacy Act, *not* requiring that the device be capable of transmitting, and including an exception commonly called the “telephone extension exception” which requires the interception to be done by the provider of the telephone equipment in the normal course of business. Most cases discussing interceptions by use of telephone extensions assume that a telephone extension is an “electronic device” under the statute, then analyze whether the exception applies. *See e.g. Arias v. Mutual Central Alarm Service, Inc.*, 202 F.3d 553 (2nd Cir. 2000); *United States v. Murdock*, 63 F.3d 1391 (6th Cir. 1995), *cert. Denied*, 517 U.S. 1187 (in dicta, non-consensual use of extension telephone to intercept call must fall within telephone extension exception); *United States v. Harpel*, 493 F.2d 346 (10th Cir 1974)(telephone extension constituted an intercepting device); *Campiti v. Walonis*, 611 F.2d 387 (1st Cir. 1979)(police use of extension phone to covertly intercept conversations between prison inmates does not satisfy requirements of telephone extension exception because not in normal course of business). *But see State v. Valenzuela*, 590 So.2d 89 (LA 1992)(police did “intercept” conversation when they used a speakerphone to covertly overhear defendant’s conversation because the speaker was not an electronic device).

8. Tipped receiver plus consent

Listening to a telephone conversation through a tipped receiver with the consent of a party to the conversation. *State v. Corliss*, 123 Wn.2d 656, 663-664, 870 P.2d 317 (1994) (Reason: No device used to intercept conversation).

9. Uniformed police, combined sound and video recordings

Uniformed police may operate video recorders in their patrol vehicles and may wear a sound recording device that corresponds to the video recorder. Many limitations. RCW 9.73.090(1)(c).

a. Limitations

- (1) Sound recorder may not be operated without video camera also being operated;
- (2) Sound recorder may not be intentionally turned off while video camera is running;
- (3) Officer must inform subject that a sound recording is being made and that warning must be part of the sound recording;
- (4) Exception for exigent circumstances;
- (5) Officer is *not* required to inform subject that a video recording is being made;
- (6) Recordings may not be disclosed except in the context of litigation arising out of the incident recorded or after final disposition of said litigation. Under no circumstances may recordings be used for commercial purpose;
- (7) Knowing alteration, erasure, or wrongful disclosure of any recording made under this provision is a gross misdemeanor. RCW 9.73.080(2).
- (8) Query: Should recordings made in inadvertent violation of this statute be admissible? Audio recordings that violate RCW 9.73.030 will be suppressed under RCW 9.73.050. But .030 only prohibits interception or recording of *private* communications/conversations. Conversation with a uniformed officer in the course of arrest is not private. *See State v. Flora*, 68 Wn. App. 802, 845 P.2d 1355 (1992). Video recordings don't violate .030 unless they somehow contain private communications.

10. Other exceptions

Can record with consent of one party to the communication, wire communications or conversations without a court order, per RCW 9.73.030(2), if the conversations and communications:

- a. Are of an emergency nature (i.e. 911 calls);
- b. Convey threats of extortion, blackmail, or bodily harm, or other similar requests or demands. *See also State v. Caliguri*, 99 Wn.2d 501, 504-508, 664 P.2d 466 (1983) (“Convey” means “to impart or communicate either directly by clear statement or indirectly by suggestion, implication, gesture, attitude, behavior, or appearance.”); *State v. Robinson*, 38 Wn. App. 871, 691 P.2d 213 (1985), *review denied*, 103 Wn.2d 1015; *State v. Williams*, 94 Wn.2d 531, 617 P.2d 1012 (1980).
- c. Occur anonymously or repeatedly or at an extremely inconvenient hour (harassing telephone calls); or
- d. Are communications with a hostage holder or barricaded person. *See also State v. Pejsa*, 75 Wn. App. 139, 150, 876 P.2d 963 (1994), *review denied*, 125 Wn.2d 1015 (1995) (Pejsa was a barricaded person “because he had ‘established a perimeter around an area from which others are excluded.’”).

D. Possible Exception: Recordings Legal In The State Where Made, No Parties Within Washington

- 1. “The State of Washington has no jurisdiction over actions having no effect in this state.” *State v. Mayes*, 20 Wn. App. 184, 193, 579 P.2d 999 (1978) (Recording made by California authority, in California, of suspects in California, principally to aid California police did not violate RCW 9.73.030, so were not inadmissible under RCW 9.73.050). *See also State v. Fleming*, 91 Or. App. 394, 399, 755 P.2d 725, 727 (1988), *review denied*, 763 P.2d 152 (1988) (Washington law “simply does not apply” to a recording made wholly within Oregon), *cited with approval by Kadoranian v. Bellingham Police Department*, 119 Wn.2d 178, 829 P.2d 1061 (1992).

2. *State v. Brown*, 132 Wn.2d 529, 940 P.2d 546 (1997), allowed use of Brown's confession surreptitiously recorded by Palm Springs police in accordance with California law, but without first obtaining an order pursuant to RCW 9.73. Court applied silver platter analysis, found insufficient involvement by Washington police to warrant suppression (they merely asked Palm Springs to obtain a statement).
3. Two important statements by Washington Supreme Court in *Brown*:
 - a. A "privacy statute creates a privacy expectation only for individuals who are within the borders of that state." p. 590.
 - b. "No Washington state officer violated RCW 9.73 and no one's privacy interests protected by the statute were infringed." p. 590.
4. Cautions:
 - a. *Brown* was a very nasty, high-profile death penalty case and the RCW 9.73 violation was relatively minor: Failure to advise Brown that his conversation with Palm Springs detectives was being recorded. Query: Would the *Brown* reasoning be applied to a California recording of an undercover drug buy? A California wiretap or bug?
 - b. The court has said elsewhere that the law of the jurisdiction where the recording is made governs the legality of the interception. *See Kadoranian v. Bellingham Police Department*, 119 Wn.2d 178, 829 P.2d 1061 (1992). Query: What if a Washington officer knowingly participated in the out of state interception?
 - c. In a ruling not related to RCW 9.73, Division II held that conflict of laws analysis controls when an investigative action occurs completely outside Washington's borders (Conflict rule: The law of the state with the most significant relation to the communication controls, unless that is contrary to strong public policy.) *State v.*

Donahue, 105 Wn. App. 67, 18 P.3d 608 (2001) (Suspect's blood was drawn by Oregon hospital staff under their Oregon State authority. There was no indication that any Washington authority was involved in the blood draw). *See also State v. Koopman*, 68 Wn. App. 514, 844 P.2d 1024 (1993) (legality of alleged improper police conduct outside Washington should be determined by reference to the law of the jurisdiction in which the conduct occurred).

- (1) Query: Would the same reasoning apply if out of state investigators recorded a telephone call to a person who is within Washington? Would it matter where the crime occurred?
- (2) Query: Would Washington courts rule that RCW 9.73 is intended to regulate the conduct of and determine admissibility of recordings made by Washington police officers, even if acting outside Washington? Would the *Brown* reasoning and result be the same if a Washington police officer had traveled to California to participate in the interrogation? What if the police officer recorded, without court order, a person calling into Washington from another state? What if the call was initiated in Washington State to someone in another state? Would it depend upon Washington law, or the law of that other state?

E. CAUTION: Recordings Made By Federal Agents Acting Within Washington's Borders.

See section VIII. D., *infra*.

V. WIRETAPS AND BUGS

A. Wiretap Definition

A listening device inserted in the lines to a telephone to overhear, transmit, or record conversations, without knowledge or consent of the speakers.

B. Bug Definition

A miniature microphone or other device secretly placed in a position to overhear, transmit or record conversations, without knowledge or consent of the speakers.

C. Federal Law

Title III (18 U.S.C. §§ 2510-2522) governs and sets minimum standards. The legal requirements to obtain a court order are very similar to those of Washington's one party consent law, RCW 9.73.090, .120, .130, and .140, which were copied/adapted from Title III as it existed in 1977.

D. Washington Law

1. Governed by RCW 9.73.040
 - a. Can obtain court authorization to use wiretap or bug only for intervention where essential to:
 - (1) Preserve national security;
 - (2) Prevent arson or a riot; or
 - (3) Save human life.
 - b. Requires procedure similar to Title III but does not conform to Title III standards (therefore technically violates federal law).
2. Not admissible in evidence. RCW 9.73.050.

VI. ONE PARTY CONSENT: COURT APPROVED AUDIO INTERCEPTION AND RECORDING

A. Statutory Requirements For Court Ordered Interception

RCW 9.73.090(2) allows court approved participant monitoring and evidentiary use of information obtained. Very stringent requirements spelled out in RCW 9.73.090(2), .120, .130, and .140. Highlights of the statutory scheme:

1. Felony crimes only. RCW 9.73.090(2).

Caution: Attempts, solicitations, and conspiracies involving Class C felonies are not felonies!

2. Consent of one party required. RCW 9.73.090(2).

Practice Tip: Have the consenting party sign a consent form and have a witness sign also.

3. Written application under oath by officer. RCW 9.73.090(2), . 130.

4. Identification of person who authorized the application. RCW 9.73.130. Consistent with federal law, from which this language is drawn, we interpret this to require that the application identify a superior above the rank of first line supervisor as having authorized the use of a one party consent interception.

5. Probable cause that non-consenting party has committed, is engaged in, or is about to commit, a felony; and that a conversation involving that person talking about that felony will occur. RCW 9.73.130.

6. Particularized statements as to RCW 9.73.130:

- a. Probable cause to believe the conversations will occur at a specific place, or wire communication facility;

(1) Must be as specific as it can be under the circumstances of the case. *State v. Smith*, 85 Wn. App. 381, 932 P.2d 717 (1997), *review denied* 132 Wn.2d 1010;

- b. Identity of the persons involved;
 - c. Previous applications; and
 - d. Qualifications of individual(s) who will be monitoring and/or intercepting.

Caution: “Catchall” listings of entire police units or departments, without specifically identifying persons who will monitor, transmit, and/or record, was disapproved in *State v. Jimenez*, 76 Wn. App. 647, 888 P.2d 744 (1995), *reversed on other grounds*, 128 Wn.2d 720 (1996) (drug authorization case).

7. *Showing of necessity* - a showing "that other normal investigative procedures with respect to the offense have been tried and have failed or reasonably appear to be unlikely to succeed if tried or to be too dangerous to employ." RCW 9.73.130(3)(f).
 - a. **A possible trap that can lead to losing evidence or your case.** Must provide court with facts upon which to conclude necessity exists. See section VI. B. 2., *infra*, for detailed discussion.
 - b. Practice Tip: In your application, tell the court what investigative methods you have tried or considered, explain why they failed or were unlikely to succeed, and explain what investigative deficiencies a recording would remedy.
8. Authorizations are good for *up to* 7 days (14 days in drug cases) maximum, and may be renewed/extended for additional 7 (or 14) day periods. RCW 9.73.090(4) and (5). **You must justify the length of time in your application.** *State v. O'Neill*, 103 Wn.2d 853, 873, 700 P.2d 711 (1985) (duration should not be longer than necessary under facts of particular case).

Practice Tip: Be sure your order does not run more than the maximum 7 or 14 days allowed. Consider using a beginning and ending date *and time of day*.

9. Notice to non-consenting parties within 30 days. Notice to non-consenting party may be postponed or dispensed with upon ex parte showing of "good cause" to the court. RCW 9.73.140.

- a. This notice is required even if the judge denies your application, and even if you do not record conversations. Don't apply if you don't want to give notice, unless you are very certain the judge will give you a postponement.⁴
- b. Required contents of notice:
 - (1) Notice that authorization (and any extensions and/or renewals) was applied for, granted, modified or denied, and the date of the court's action;
 - (2) All period(s) authorized *or disapproved* for recording;
 - (3) Statement whether or not recordings were made during authorization period.
- 10. Report to Administrator for the Courts (AOC) within 30 days. Detailed content requirements. RCW 9.73.120(1).
- 11. Judges must make an annual report to Administrator for the Courts each January. RCW 9.73.120(2). AOC mails these out each year.
 - a. Practice Tip: The ACLU and the Administrator for the Courts compare the 30-day reports to the annual reports. Judges sometimes forget by January what they did last March, and many judges are not familiar with the intricacies of the statute, so you should carefully prepare and file the 30-day notice, the 30-day report, and the annual report for the judge. AOC has forms for both 30-day and annual reports. Contact the AOC at (360) 357-2124.
- 12. Recordings must be preserved until statute of limitations expires. RCW 9.73.090(2).
- 13. Court authorized recordings can be used in evidence and

⁴ Failure to comply with this provision does not require suppression of recording unless defendant can show prejudice. *State v. Irwin*, 43 Wn. App. 553, 718 P.2d 826 (1986), review denied 106 Wn.2d 1009 (1986).

participants can testify about the conversations and their observations. *See* RCW 9.73.050 and RCW 9.73.030.

14. Practice Tip: Consider seeking an order of the presiding judge setting up a non-public cause number for all documents filed under authority of RCW 9.73. Contact Susan Storey of King County for details. Otherwise, consider sealing documents filed under RCW 9.73 on a case by case basis. See section XIX., *infra*.

B. Important Case Law Discussion Of Requirements For Court Ordered Interception

1. Confidential Informants

When application relies on confidential informant to establish probable cause, application must contain information from which court can determine informant's reliability, basis of knowledge, and veracity. *State v. Lopez*, 70 Wn. App. 259, 856 P.2d 390 (1993), *review denied*, 123 Wn.2d 1002 (1994).

Obvious Note: If your informant is also your consenting person, then the informant is transactional, will testify at trial, and his or her identity will necessarily be disclosed to defendant.

2. Necessity Requirement

a. Legislative policy

One party consent interceptions should not be used unless really necessary. *State v. Manning*, 81 Wn. App. 714, 915 P.2d 1162 (1996), *review denied*, 130 Wn.2d (1996).

b. Specific facts required

Application must inform the judge of case specific facts upon which the court can determine that "normal investigative procedures have been tried and failed or reasonably appear unlikely to succeed if tried, or to be too dangerous to employ."

- (1) Focus this showing on the investigator's perspective, rather than the trial lawyer's perspective.
- (2) "Boilerplate is antithetical to the statute's particularity requirement." *State v. Manning*, 81 Wn. App. 714, 720, 915 P.2d 1162 (1996), *review denied*, 130 Wn.2d 1010. *Manning* concluded the following had become "boilerplate" and merely stated "truism" that a recording of defendant's conversation is advantageous to State in obtaining conviction:
 - (a) avoiding one-on-one swearing contest;
 - (b) provide uncontroverted evidence of criminal intent;
 - (c) minimize factual confusion; rebut anticipated entrapment claim;
 - (d) defendant's actual spoken words are best evidence of the conversation.
- (3) Practice Tip: Keep some of the "boilerplate" about reliable evidence, best evidence, and so on, but (a) weave the facts of the investigation into the boilerplate; (b) add a particularized statement of other necessity factors specific to the facts of the case; and (c) make it as neutral as possible.

c. Not absolute necessity

Not required to exhaust all alternatives. But must seriously consider other techniques *and* must inform court of reasons the alternatives have been or likely will be inadequate. *State v. Kichinko*, 26 Wn. App. 304, 613 P.2d 792 (1980), *review denied*, 94 Wn.2d 1011 (1980); *State v. Knight*, 54 Wn. App. 143, 772 P.2d 1042 (1989), *review denied*, 113 Wn.2d 1014 (1989).

Necessity requirement is less than that

required/discussed in federal case law because the Washington Privacy Act, although drawn from federal wiretap law, differs by requiring one party to the conversation to consent to its interception. *State v. Cisneros*, 63 Wn. App. 724, 821 P.2d 1262 (1992), *review denied*, 119 Wn.2d 1002 (1992)

d. Critical inquiry

Whether police either tried to give serious consideration to other methods and whether they explained to the issuing judge why those methods would not be successful given the particular facts of the case. *State v. Manning*, 81 Wn. App. 714, 720, 915 P.2d 1162 (1996), *review denied*, 130 Wn.2d 1010.

e. Review highly deferential

Reviewing court determines whether facts set forth in application were minimally adequate to support the issuing judge's determination. *State v. Knight*, 54 Wn. App. 143, 772 P.2d 1042 (1989), *review denied*, 113 Wn.2d 1014 (1989); *State v. Cisneros*, 63 Wn. App. 724, 821 P.2d 1262 (1992), *review denied*, 119 Wn.2d 1002 (1992).

3. Examples of necessity showing: investigative problems

- a. The consenting person (CP) who will wear the wire is impeachable for bias, priors, the deal the CP has made with the police, etc. *State v. Cisneros*, 63 Wn. App. 724, 821 P.2d 1262 (1992), *review denied*, 119 Wn.2d 1002 (1992).
- b. The target will not deal with anyone but the CP, so investigators cannot introduce an undercover officer, bishop, rabbi, stenographer, or other reliable person to testify about and/or record the conversation. *State v. Irwin*, 43 Wn. App. 553, 718 P.2d 826 (1986), *review denied* 106 Wn.2d 1009 (1986), *State v. Cisneros*, 63 Wn. App. 724, 821 P.2d 1262 (1992), *review denied*, 119 Wn.2d 1002 (1992) (Undercover officer would look out of place with cooperating witness).

- c. The target will talk only in a private place. *State v. Irwin*, 43 Wn. App. 553, 718 P.2d 826 (1986), *review denied* 106 Wn.2d 1009 (1986); *State v. Lopez*, 70 Wn. App. 259, 856 P.2d 390 (1993), *review denied*, 123 Wn.2d 1002 (1994).
- d. Previous transactions show that unaided surveillance is not possible. *State v. Lopez*, 70 Wn. App. 259, 856 P.2d 390 (1993), *review denied*, 123 Wn.2d 1002 (1994); *State v. Irwin*, 43 Wn. App. 553, 718 P.2d 826 (1986), *review denied* 106 Wn.2d 1009 (1986) (property enclosed by fence, protected by guard dog, neighbors maintained lookout for strangers, unsuccessful at gaining access to neighboring property from which to conduct surveillance).
- e. The location of the conversation is unknown or may be changed, and investigators are not certain that they can maneuver the case to have the conversation take place where officers can overhear it or a court reporter or stenographer can record the conversation. *State v. Lopez*, 70 Wn. App. 259, 856 P.2d 390 (1993), *review denied*, 123 Wn.2d (1994).
- f. The CP may have entrapped the target or the target may allege entrapment (this should be spelled out in some detail relating to the facts of the case), and interception and recording are the only way or the best way for investigators to determine whether entrapment has occurred. Emphasize fairness to the target, as well as best evidence for investigators and the trier of fact. *State v. Cisneros*, 63 Wn. App. 724, 821 P.2d 1262 (1992), *review denied*, 119 Wn.2d 1002 (1992); *State v. Lopez*, 70 Wn. App. 259, 856 P.2d 390 (1993), *review denied*, 123 Wn.2d 1002 (1994).
- g. There is possible danger to the CP, and there is no reasonable alternative available to protect the person (set forth alternatives considered and rejected, and the reasons they were rejected). "The Government has never been required to subject its agents and informants

to undue personal danger in order to satisfy the requirements of [the wiretap statute]." *United States v. Hyde*, 574 F.2d 856, 868 (5th Cir. 1978), *quoted with approval in State v. Knight*, 54 Wn. App. 143, 772 P.2d 1042 (1989), *review denied*, 113 Wn.2d 1014 (1989). This showing can include evidence that the target is violent or regularly is armed, or the possibility/probability of robbery or rip-off in transactions such as drug deliveries. *State v. Irwin*, 43 Wn. App. 553, 718 P.2d 826 (1986), *review denied* 106 Wn.2d 1009 (1986); *State v. Lopez*, 70 Wn. App. 259, 856 P.2d 390 (1993), *review denied*, 123 Wn.2d 1002 (1994). *See also State v. D.J.W.*, 76 Wn. App. 135, 882 P.2d 1199 (1994), *affirmed on other grounds as State v. Clark*, 129 Wn.2d 211, 916 P.2d 384 (1996).

- h. Previous investigations into suspected continuing criminal behavior have been inconclusive. *State v. D.J.W.*, 76 Wn. App. 135, 882 P.2d 1199 (1994), *affirmed on other grounds as State v. Clark*, 129 Wn.2d 211, 916 P.2d 384 (1996).
- i. The homicide had gone unsolved for nine months. *State v. Platz*, 33 Wn. App. 345, 655 P.2d 710 (1982), *review denied* 99 Wn.2d 1012 (1983).
- j. A minor player in a conspiracy remains part of the conspiracy and will not talk honestly with investigators, unless they are able to get him to incriminate himself on tape and then can confront him with the tape they have.
- k. Inflections of voice and speech patterns uniquely relevant to suspect's diminished capacity and entrapment defenses and could not have been adequately communicated by alternative means. *See State v. Coe*, 101 Wn.2d 364, 373, 679 P.2d 353 (1984) (Not an RCW 9.73 case, but predictive of court's view).

4. Examples of necessity showing: crime specific reasons

- a. Proof of knowledge or intent in investigations where that proof is problematic. *State v. Kichinko*, 26 Wn. App. 304, 613 P.2d 792 (1980), *review denied*, 94

Wn.2d 1011 (1980) (proof of knowledge that property was stolen in attempted possession of stolen property case).

- b. Proof of exact words, tone of voice, inflections, where the crime itself is verbal, e.g. conspiracy, extortion, bribery, theft by deception, intimidation, witness tampering, gambling, and thus the spoken words would be subject to claims of misunderstanding, faulty memory, or fabrication, if not recorded. *State v. Knight*, 54 Wn. App. 143, 772 P.2d 1042 (1989), *review denied*, 113 Wn.2d 1014 (1989).

C. Alternatives To One Party Consent

Consider the following when you don't have probable cause, don't have time to get an order authorizing interception and recording or, in the case of drug cases, written police supervisor authorization:

1. Is It A Private Conversation? Section IV. A., *infra*
2. Does One Of The Exceptions Apply? Sections IV. B. C. and D., *infra*
3. Try To Legally Eavesdrop On The Conversation

For example from the next room, the next table, other undercover place, or via telephone extension or tipped receiver.

4. Have The Consenting Party Write A Detailed Statement Immediately After The Conversation
5. Try To Postpone The Conversation Until You Can Obtain An Order

VII. ONE PARTY CONSENT: MAJOR DRUG CASES

A. Evidence Gathering Interceptions In Major Drug Cases

1. Circumstances where authorized

Without court authorization, but with the consent of one party, RCW 9.73.230 allows recording in felony drug investigations,

above mere possession, if:

- a. There is a bona fide criminal investigation where there is probable cause to believe communications concerning manufacture/delivery/sale of controlled substances, legend drugs, or imitation controlled substances will occur; and
- b. Recording is authorized by a designee (above first line supervisor) of the chief law enforcement officer of an agency; and
- c. Written report is completed at time of authorization, and signed at noted date and time by authorizing superior. Detailed requirements for authorization content. See section VII. A. 2., *infra*.

2. Written authorization - required contents

RCW 9.73.230(2) requires written authorization to include:

- a. Circumstances showing requirements met; and
- b. Names of authorizing/consenting parties; and
- c. Names of officers authorized to intercept, transmit, and record; and
- d. Names of suspects (if known); and
- e. Details of offense including expected date, time, and location of communications (as specific as can be given circumstances of case; *State v. Smith*, 85 Wn. App. 381, 932 P.2d 717 (1997), *review denied* 132 Wn.2d 1010 (1997); and
- f. Whether or not there were (and outcome of) prior attempts to get court authorization under RCW 9.73.090(2).

3. Authorization is good for 24 hours

- a. May be extended twice for consecutive 24-hour periods

based on same transaction and probable cause. RCW 9.73.230(5).

- b. Statute does not limit number of new authorizations that independently meet all requirements of statute. *State v. Jimenez*, 76 Wn. App. 647, 650, 888 P.2d 744 (1995), *reversed on other grounds*, 128 Wn.2d 720 (1996).

4. Subsequent review and reports

- a. Within 15 days must submit report and authorization to judge who shall review to determine whether the requirements of the statute were met. This process is similar to the federal one party consent process, except for the probable cause requirement and except that the Washington legislature refused to trust police, and therefore mandated court review after the fact. RCW 9.73.230(6) and (7).

Note: If judicial review is late, court should not suppress unless defendant can show that s/he was prejudiced by the delay. *State v. Knight*, 79 Wn. App. 670, 684, 904 P.2d 1159 (1995), *review denied* 129 Wn.2d 1005 (1996).

- b. Monthly report to Administrator for the Courts. RCW 9.73.230(6). Required for all authorizations, whether or not recording resulted.
- c. If reviewing court finds lack of probable cause, must notify suspect within 6 months of the interception, its date, time, and place. Notice must also identify the police agency and state that interception violated the statute. May be postponed if notice would jeopardize ongoing investigation. RCW 9.73.230(7)(b) and (c).

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5. Admissibility of RCW 9.73.230 recordings

- a. Recording is admissible in drug prosecution (except mere possession) and in certain limited other cases. RCW 9.73.230(8)(a).
- b. Recording is likely *not* admissible in non-drug cases.

See RCW 9.73.230(8) and 9.73.030(1).

- c. But officer's testimony is likely admissible in non-drug cases, if the officer has not refreshed his or her memory with the recording. See RCW 9.73.230(8)(d).

Caution: Avoid deliberate reliance on this exception to make non-drug recordings without court order.

- d. Practice Tip: If you are investigating or aware that other, non-drug crimes may be discussed during recording, **GET A COURT ORDER.**

6. Penalties for violating RCW 9.73.230

- a. Class C felony if violation is intentional. RCW 9.73.230(10).
- b. Exemplary damages of \$25,000 plus any other damages if the authorization was made without probable cause and reason to believe the conversations would involve a felony drug crime above mere possession. RCW 9.73.230(11).

B. Case Law Discussion - Evidentiary Drug Interception

1. Multiple conversations

A single authorization may cover multiple conversations related to the same drug transaction, *State v. Forest*, 85 Wn. App. 62, 930 P.2d 941 (1997), *review denied* 133 Wn.2d 1015 (1997).

2. Jurisdiction of authorizing supervisor

Interception and recording must occur within the jurisdiction of the authorizing supervisor (see exception below), but the physical location of the person on the other end of the conversation is irrelevant (e.g. Tacoma PD can't take recording equipment to Sumner, but if recording equipment is in Tacoma and suspect is in Sumner, OK to record under this authority). *State v. Matthews*, 101 Wn. App. 894, 5 P.3d 1273 (2000).

- a. Practice Tip: Task force investigations, jurisdiction should be OK for all agencies that are members of the task force, so long as the authorizing commander has command over the task force.
- b. Practice Tip: Reference in the application to an existing “mutual law enforcement assistance” agreement under RCW 10.93.020(10) and .070(1) might effectively expand jurisdiction, but no case has specifically decided that question. (Interlocal agreements were discussed in *State v. Knight*, 79 Wn. App. 670, 684, 904 P.2d 1159 (1995), *review denied* 129 Wn.2d 1005 (1996), but found to be immaterial where the authorizing supervisor was a member of a task force and the interception occurred within the jurisdiction of the task force.)
Caution dictates using a court-authorized interception (See section VI., *infra*) if it is anticipated that the interception may occur outside the authorizing commander’s jurisdiction.
- c. Exception: Recording equipment can apparently be taken outside the authorizing supervisor’s jurisdiction if the suspect causes or invites the consenting party to enter another jurisdiction. See RCW 9.73.230(3); *State v. Matthews*, 101 Wn. App. 894, 5 P.3d 1273 (2000).

3. Good faith

- a. Courts require police agencies to strictly comply with RCW 9.73.230 and .210. Failure to strictly comply results in suppression of recordings. *State v. Jimenez*, 76 Wn. App. 647, 726, 888 P.2d 744 (1995), *reversed on other grounds*, 128 Wn.2d 720 (1996); *State v. Smith*, 85 Wn. App. 381, 388, 932 P.2d 717 (1997), *review denied* 132 Wn.2d 1010 (1997).
- b. Officers who make a “genuine good faith effort to comply with the privacy act” but act on invalid drug authorization may testify about the same matter so long as the information offered was not obtained solely from the illegal recording. But the recording is not admissible. *State v. Jimenez*, 76 Wn. App. 647, 726, 888

P.2d 744 (1995), *reversed on other grounds*, 128 Wn.2d 720 (1996) (applying language of RCW 9.73.230(8)).

Practice Tip: Officers should not listen to the recording prior to testifying. Police who use the recording to refresh their memories prior to testifying may find their testimony suppressed for violation of the “unaided by” language in RCW 9.73.230(8).

- c. Caution: The court’s acceptance of the good faith doctrine appears to be limited to interceptions in drug cases, done under RCW 9.73.210 or .230; or to the extreme situation where the “innocent” participant in the conversation did not know it was being recorded. *See State v. Grant*, 9 Wn. App. 260, 511 P.2d 1013 (1973), *review denied*, 83 Wn.2d 1003 (1973), *cert. denied*, 419 U.S. 849 (1974).

C. Key Differences Between Court Ordered Interceptions And Agency Only Authorizations

Court Ordered Interceptions	Agency Only Authorizations
Valid for up to 7 days, or 14 days in drug cases	Valid for up to 24 hours
Necessity showing required.	No necessity showing needed.
Strict compliance required, violation results in suppression of recording, testimony, observations of all participants who have knowledge of the recording.	Strict compliance required, but police good faith action on invalid authorization can save independent testimony, observations from suppression (recording will be suppressed).
Suspect must be notified within 30 days of application, authorization and interception, may be postponed or dispensed with on court’s good cause finding.	Suspect must only be notified (within 6 months) if reviewing court finds that authorization lacked probable cause, may be postponed for 6 months if notice would jeopardize ongoing investigation.
Lawful interceptions admissible in any case.	Lawful interceptions only admissible in felony drug crimes above mere possession or when consenting party is victim of serious violent offense or with permission of non-consenting party.
Court’s order valid for statewide interception.	Interception must occur within jurisdiction of authorizing supervisor.

Authorizing judge must file 30-day report with AOC and, if a superior court judge, must file annual report with AOC.	Police agency (not Judge) must file monthly report with AOC. No annual report required. No report required from reviewing judge.
Violation is gross misdemeanor and carries potential damages up to \$1,000 and attorney fees.	Intentional violation is class C felony and carries potential exemplary damages of \$25,000, plus other damages.

D. Officer Protection Interceptions In Major Drug Cases

1. Written police agency authorization required.

See below for detailed discussion.

2. Recording generally NOT admissible in criminal cases

RCW 9.73.210(4). Inadmissible in all civil and criminal cases except:

- a. With permission of person whose conversation was intercepted without his/her knowledge;
- b. Serious violent crime prosecution or civil action where violence was committed against consenting person during interception;
- c. Note: Statute does not preclude testimony of a participant in a conversation recorded under this section, *so long as the witness has not reviewed the recording or a transcript of the recording.* RCW 9.73.210(5).
- d. Caution: Officer who uses hidden recording device without first obtaining *any* written authority issued or obtained pursuant to RCW 9.73 will be precluded from testifying about the conversation, his/her observations made during the transaction, and all other information obtained in violation of RCW 9.73. *State v. Salinas*, 121 Wn.2d 689, 853 P.2d 439 (1993).

3. Circumstances where authorized

Without court authorization, but with the consent of one party, RCW 9.73.210 allows recording if:

- a. Face to face conversation (*cannot record telephone conversations*); and
- b. *Reason to suspect* the consenting party is in danger and a communication concerning manufacture/delivery/sale of controlled substances, legend drugs, or imitation controlled substances will occur; and
- c. Interception, transmission, or recording is authorized in writing by an officer above first line supervisor. Detailed requirements for authorization content, see below.

4. Written authorization - required contents

Written authorization must include:

- a. Date and time of authorization; and
- b. Names of all persons expected to participate in the conversation, to the extent known; and
- c. Expected date, time, and location of communications; and
- d. Reasons for believing consenting party's safety is in danger. **Conclusory language that undercover work is inherently dangerous and drug dealers are known to carry weapons is not sufficient.** *State v. Costello*, 84 Wn. App. 150, 925 P.2d 1296 (1996).

Note: Although the *Costello* authorization failed to comply with the statute, the court allowed the undercover officer to testify under RCW 9.73.210(5). Good faith attempted compliance with statute, and the language of RCW 9.73.210(5), made the difference. *State v. Costello*, 84 Wn. App. 150, 155, 925 P.2d 1296 (1996).

- 5. Requires a monthly report to the Administrator for the Courts
- 6. Tapes and transcripts must be destroyed

Unless admissible under RCW 9.73.210(4) exceptions, discussed above.

VIII. OPERATING WITH WIRED AGENTS

A. Tactical Considerations

1. Script beforehand - outline the information you want to get, what approach/pose you plan to take regarding the target.
2. Assess the ability of the consenting person (CP) to carry off a good wired conversation. CP can be victim, other citizen, CI, undercover law enforcement, etc.
 - a. Will the CP turn on you and tip off the target?
 - b. Will the CP get stage fright and clam up, tip off the target by body language, nervousness, or other conduct?
 - c. Will the CP nervously talk too much instead of getting the target to talk?
 - d. Will the CP talk or act in a way that will embarrass you and your case in court?
 - e. Will the CP talk or act in a way that will create a defense of entrapment, duress, or police misconduct?
3. Remind the CP that what the CP says will also be recorded.
4. *Carefully* assess the risks that the target will know or suspect recording and will produce powerful, false negative evidence that will hurt or torpedo your case.
5. *Carefully* consider whether your investigative plan creates entrapment issues. See Appendix C to this outline for detailed discussion.

B. Recording Charged Suspects

Concern is violation of target's Sixth Amendment right to counsel or

violation of RPC 4.2 (Communication with Person Represented by Counsel).

1. Sixth Amendment right to counsel

- a. Right to counsel is offense specific and does not attach until charges are formally filed. *State v. Stewart*, 113 Wn.2d 462, 780 P.2d 844 (1989), *cert. denied*, 494 U.S. 1020 (1990); *Texas v. Cobb*, 532 U.S. 162, 121 S. Ct. 1335, 149 L. Ed. 2d 321 (2001).
- b. Right to counsel applies only to the charged crime, and to any crime that is the “same offense” under the *Blockburger* test (two offenses exist when each offense requires proof of a fact which the other does not). *Texas v. Cobb*, 532 U.S. 162, 121 S. Ct. 1335, 149 L. Ed. 2d 321 (2001) (after being charged with burglary, obtaining counsel, and being released from custody, Cobb confessed to murder committed during burglary. *Held*, no Sixth Amendment violation).

2. Cautions - in any case, but particularly if target has been charged and is represented in another case

- a. Do not elicit attorney's statements or strategies.
- b. Do not disparage attorney or otherwise interfere in the attorney-client relationship.
- c. Do not participate in or record what would otherwise be a privileged communication.

3. Rules of Professional Conduct

- a. RPC 4.2 - A Lawyer shall not
 - (1) communicate
 - (2) with a party
 - (3) known to be represented in the matter
 - (4) unless

(a) consent of the attorney, or

(b) authorized by law.

b. RPC 5.3(c)

A lawyer is responsible for the conduct of an investigator if the lawyer orders or knowingly ratifies the conduct.

c. Remedies for violation

Range from admonishment through suppression to dismissal (not to mention WSBA disciplinary action). *United States v. Ryans*, 903 F.2d 731 (10th Cir. 1990), *cert. denied*, 498 U.S. 855 (1990).

4. Dueling positions regarding RPC 4.2

a. ABA formal opinion 95-396 (July 28, 1995):

- (1) "Party" means more than a party to a case. It means any person who has an interest in the matter to be discussed and is represented with respect to that interest.
- (2) Reluctantly acknowledges numerous federal courts have held RPC 4.2 not applicable to pre-charging covert contacts, but says those decisions "are not sound." Reluctantly concludes that the decisions fall within the "authorized by law" exception to RPC 4.2.

b. WSBA - has not confronted the issue

c. Federal courts - numerous rationales:

- (1) Many cases have reasoned generally that suspects should not be permitted to insulate themselves from undercover investigation simply by retaining counsel. *United States v. Ryans*, 903

F.2d 731 (10th Cir. 1990), *cert. denied*, 498 U.S. 855 (1990); *United States v. Sutton*, 801 F.2d 1346 (D.C. Cir. 1986); *United States v. Fitterer*, 710 F.2d 1328 (8th Cir. 1983), *cert. denied*, 464 U.S. 852 (1983); *United States v. Kenny*, 645 F.2d 1323 (9th Cir. 1981), *cert. denied*, 452 U.S. 920 (1981); *United States v. Vasquez*, 675 F.2d 16 (2nd Cir. 1982).

- (2) As a matter of public policy, RPC 4.2 should not be applied to unduly limit law enforcement investigations; therefore, covert contact is "authorized by law." *United States v. Ryans*, 903 F.2d 731 (10th Cir. 1990), *cert. denied*, 498 U.S. 855 (1990); *United States v. Hammad*, 858 F.2d 834 (2nd Cir. 1988), *cert. denied*, 498 U.S. 871 (1990); *United States v. Talao*, 222 F.3d 1133 (2000).
- (3) Prosecutors are "authorized by law" to conduct or supervise investigations employing legitimate investigative techniques, including covert recordings. *United States v. Ryans*, 903 F.2d 731 (10th Cir. 1990), *cert. denied*, 498 U.S. 855 (1990); *United States v. Hammad*, 858 F.2d 834 (2nd Cir. 1988), *cert. denied*, 498 U.S. 871 (1990).
- (4) RPC 4.2 does not apply during the pre-charging investigative stage of a criminal case. *United States v. Ryans*, 903 F.2d 731 (10th Cir. 1990), *cert. denied*, 498 U.S. 855 (1990).
- (5) Uncharged suspect not a "party." *United States v. Ryans*, 903 F.2d 731 (10th Cir. 1990), *cert. denied*, 498 U.S. 855 (1990); *United States v. Balter*, 91 F.3d 427 (3rd Cir. 1996), *cert. denied*, 519 U.S. 1011 (1996).
- (6) Communication doesn't violate Sixth Amendment, so it doesn't violate RPC 4.2. *United States v. Kenny*, 645 F.2d 1323 (9th Cir.

1981), *cert. denied*, 452 U.S. 920 (1981).

- (7) RPC 4.2 doesn't apply where the prosecutor was not aware of the investigator's contact with the represented person. *United States v. Heinz*, 983 F.2d 609 (5th Cir. 1993), *rehearing denied*, 988 F.2d 1215 (1993); *United States v. Jamil*, 707 F.2d 638 (2nd Cir. 1983). *See also State v. Nicholson*, 77 Wn.2d 415, 463 P.2d 633 (1969) (police questioned a suspect in custody before the suspect was charged).

C. Recording Uncharged Suspects Who Have Asserted *Miranda* Rights

Washington follows federal law in Fifth Amendment and *Miranda* matters.

Two *Miranda* rights components: The right to remain silent and the right to counsel.

The *Miranda* rule applies when a suspect is 1) interrogated by a government agent; 2) while in custody; 3) where there is an element of compulsion. Compulsion occurs in a “police-dominated atmosphere,” as with interrogation. *See State v. Warner*, 125 Wn.2d 876, 884, 889 P.2d 479 (1995), *quoting Illinois v. Perkins*, 496 U.S. 292, 110 S. Ct. 2394, 110 L. Ed. 2d 243 (1990).

Note: Assertion of a *Miranda* right to counsel is not synonymous with the Sixth Amendment right to counsel. *See* section VIII. B., *infra*, for a discussion of the Sixth Amendment right to counsel.

1. *Miranda* right to remain silent

- a. Suspect out of custody at time of covert interception

No *Miranda* or Fifth Amendment violation because suspect is not in custody.

- b. Suspect in custody at time of covert interception

- (1) No *Miranda* or Fifth Amendment violation occurs because the compulsion component is

missing. “*Miranda* forbids coercion, not mere strategic deception by taking advantage of a suspect’s misplaced trust in one he supposed to be a fellow prisoner.... *Miranda* was not meant to protect suspects from boasting about their criminal activities in front of persons whom they believe to be their cellmates.” *Illinois v. Perkins*, 496 U.S. 292, 110 S. Ct. 2394, 2397-2398, 110 L. Ed. 2d 243 (1990) (undercover agent was placed in suspect’s cell when suspect was incarcerated on charges unrelated to those under investigation).

- (2) Note: In *Perkins*, the suspect had not previously asserted his *Miranda* right to remain silent. Justice Brennan, in his concurring opinion, suggested that prior assertion of *Miranda* rights might change the legal analysis and conclusion. Subsequent courts faced with this issue have declined to distinguish between prior assertion or no prior assertion, concluding that *Miranda* simply does not apply where there is no compulsion aspect to the communication. See e.g. *Alexander v. Connecticut*, 917 F.2d 747, 751 (2nd Cir. 1990), *cert. denied*, 501 U.S. 1219 (1991).

2. *Miranda* right to counsel

- a. Suspect out of custody at time of covert interception

Release from custody lifts the bar to contact with suspect. *State v. Jones*, 102 Wn. App. 89, 96-97, 6 P.3d 58 (2000), *review denied*, 142 Wn.2d 1018 (2001) (exception when release contrived, pre-textual, or in bad faith).

- b. Suspect in custody at time of covert interception

Some element of compulsion is required before a *Miranda* or Fifth Amendment violation will be found. Covert interceptions of a suspect’s conversation with someone s/he does not know to be a police agent do not

involve the kind of compulsion contemplated by *Miranda*. See *Illinois v. Perkins*, 496 U.S. 292, 110 S. Ct. 2394, 110 L. Ed. 2d 243 (1990); *Alexander v. Connecticut*, 917 F.2d 747, 751 (2nd Cir. 1990), *cert. denied*, 501 U.S. 1219 (1991) (Alexander claimed to have asserted his right to counsel prior to his conversations with a government informant); *United States v. Stubbs*, 944 F.2d 828 (11th Cir. 1991); and *Kirby v. Senkowski*, 141 F. Supp. 2d 383, 396 (S.D.N.Y. 2001) (approving police monitoring of Kirby's jailhouse calls to his mother and girlfriend after Kirby had asserted his *Miranda* right to counsel).

D. Interaction With Federal Law Enforcement (Task Force)

Concerns are use of federally obtained evidence in state case and liability for violation of Washington Privacy Act.

1. Use of federal electronic surveillance evidence obtained *in Washington*
 - a. You can't "silver platter," that is, make use in a state court trial of federal participant monitoring evidence unless it was legally obtained under Washington law and procedures. *State v. Williams*, 94 Wn.2d 531, 617 P.2d 1012 (1980); *State v. Caliguri*, 99 Wn.2d 501, 664 P.2d 466 (1983). Therefore, you must comply with RCW 9.73 or fit within an exception to be able to use the evidence in a state prosecution.
 - b. But electronic surveillance information obtained by federal law enforcement officers in conformity with federal law (so long as state officers not involved) may be used to establish probable cause for state search warrant or electronic surveillance order. *State v. O'Neill*, 103 Wn.2d 853, 700 P.2d 711 (1985); *State v. Pacheco*, 70 Wn. App. 27, 851 P.2d 734 (1993).
 - c. Remember, our statute bars testimony of everyone and all other evidence, as well as recordings obtained in violation of RCW 9.73. *State v. Fjermestad*, 114 Wn.2d 828, 791 P.2d 897 (1990); *State v. Faford*, 128 Wn.2d 476, 910 P.2d 447 (1996), *reconsideration denied*.

2. Liability

It is best to be specially appointed a federal law officer if you participate in federal electronic surveillance without a state court order.

IX. USE OF AUDIOTAPES AT TRIAL

A. *Constitutional Analysis*

The constitution does not bar admission of intercepted and recorded conversations and communications.

1. No violation of guarantee against self-incrimination

State v. Slater, 36 Wn.2d 357, 363, 218 P.2d 329 (1950).

2. Not an unlawful search and seizure

State v. Slater, 36 Wn.2d 357, 363, 218 P.2d 329 (1950).

3. No violation of right to confront and cross examine witnesses

State v. Smith, 85 Wn.2d 840, 849-850, 540 P.2d 424 (1975).

B. *Foundational Requirements*

1. ER 901 Authentication rule

“The requirement of authentication or identification as a condition precedent to admissibility is satisfied by evidence sufficient to support a finding that the matter in question is what its proponent claims.” ER 901(a). ER 901(b) lists examples of sufficient authentication.

2. Case Law

“(1) It must be shown that the mechanical transcription device

was capable of taking testimony; (2) It must be shown that the operator of the device was competent to operate the device; (3) The authenticity and correctness of the recording must be established; (4) It must be shown that changes, additions, or deletions have not been made; (5) The manner of preservation of the record must be shown; (6) Speakers must be identified; (7) It must be shown that the testimony elicited was freely and voluntarily made, without any kind of duress.”” *State v. Smith*, 85 Wn.2d 840, 847, 540 P.2d 424 (1975), *quoting State v. Williams*, 49 Wn.2d 354, 360, 301 P.2d 769 (1956).

There is no single way to authenticate a recording. A witness's testimony provides the necessary foundation to authenticate a tape recording if it is sufficient to support findings (1) that the tape is what it purports to be and (2) that the tape's condition at trial is substantially the same as its condition on whatever earlier date is relevant (usually the date on which the tape was recorded). *State v. Jackson*, 113 Wn. App. 762, 54 P.3d 739 (2002) (combining *Williams* fifth and sixth elements and omitting the last).

C. The Audio Tape Is Not Hearsay, Or Is Admissible Under An Exception To The Hearsay Rule

1. Admission of defendant against interest

Recorded statement is so far contrary to defendant's interest that s/he would not have made the statement unless s/he believed it to be true. (Evidence of corroborating circumstances required.) ER 804(b)(3).

2. Co-conspirator statements

Tape contains defendant's statements, statements of another speaking for him, statements of others that s/he has adopted, statement by conspirator during course of and in furtherance of conspiracy. ER 801(d)(2); *See State v. Israel*, 113 Wn. App. 243, 54 P.3d 1218 (2002), *reconsideration denied* (2002).

3. Statements of other speakers on recording

Statements of other speakers on recording admissible to show context. *See State v. Demery*, 144 Wn.2d 753, 30 P.3d 1278

(2001).

D. Admission Of An Audio Tape Does Not Violate The Best Evidence Rule

State v. Frazier, 99 Wn.2d 180, 189, 661 P.2d 126 (1980).

E. The Presence Of Inaudible, Immaterial, Or Even Prejudicial Matter On An Audio Tape Does Not Make It Inadmissible

State v. Lykoski, 47 Wn.2d 102, 109-110, 287 P.2d 114 (1955)
(inaudibility, vulgarity, possible immateriality, individually or collectively do not render otherwise relevant recording inadmissible).
See also State v. Slater, 36 Wn.2d 357, 364, 218 P.2d 329 (1950).

F. The Court Should Conduct A Pretrial Hearing To Determine The Admissibility And Presentation Of The Audio Tape

1. Evaluate legal basis for admissibility
2. Establish procedure for presenting the evidence

Note: Consider multiple headsets for hard to hear recordings. Approved in *D'Aguino v. United States*, 192 F.2d 338 (9th Cir. 1951), *cert. denied*, 343 U.S. 935 (1952); *Gillars v. United States*, 182 F.2d 962, 977-978 (D.C. Cir. 1950) (does not deny defendant right to public trial).

3. Court should review transcript for accuracy

G. The Recording And A Tape Player Go To The Jury

1. Trial court did not abuse discretion when it allowed jury to have cassette tape *and* a tape player during deliberations. Withholding the player “would be like admitting a written contract but denying the jurors their eyeglasses necessary to read it.” *State v. Elmore*, 139 Wn.2d 250, 985 P.2d 289 (1999).
2. Test is whether the exhibit bears directly on the charge and is not unduly prejudicial. A recording may be unduly prejudicial if it is likely to stimulate an emotional response rather than a rational decision. “Undue influence” or “unlimited access” are *not* the test. *State v. Elmore*, 139 Wn.2d 250, 985 P.2d 289

(1999); *State v. Castellanos*, 132 Wn.2d 94, 935 P.2d 1353 (1997).

H. When Defendant Offers An Unlawful Recording At Trial

1. Normally, the recording is inadmissible per RCW 9.73.050, even when offered by defendant.
2. However, defendant's constitutional rights may supersede the statute. *State v. Baird*, 83 Wn. App. 477, 922 P.2d 157 (1996), review denied, 131 Wn.2d 1012 (1997) (affirmed suppression of an illegal recording as too far removed from defendant's right to testify (under the facts of that case). *Baird* says the court should balance the general public policy of the Privacy Act and the personal privacy interests in the particular private conversations (the interests promoted by the statute) against a defendant's constitutional due process right to a fair trial.

Practice Tip: If the court concludes that defendant's constitutional right supersedes the statute, consider requesting a pretrial hearing to determine whether defendant can lay the ER 901 foundation. Use common sense as a guide to cross-examination on authenticity of the recording. Is the recording what defendant purports it to be? If so, how much weight should the jury give the recording? Can you tell from the face of the recording when it was made? Who made it? Has it been altered or edited? Who are the speakers? What were the circumstances of the recording? What is the chain of custody? If defendant authenticates the recording, in addition to the above, point out at trial the deception inherent in secretly recording the conversation. Be sure to have a testifying defendant confirm having secretly made the recording. However, avoid mentioning the illegality of the recording as this would likely be ruled irrelevant and unfairly prejudicial.

X. AERIAL SURVEILLANCE

Viewing, photographing, or videotaping, from an aircraft, objects and/or activity on land or water.

A. Federal Law

1. Fourth Amendment analysis
2. Open fields doctrine

Open fields are not entitled to Fourth Amendment protection from searches and seizures. *State v. Myrick*, 102 Wn.2d 506, 688 P.2d 151 (1984), citing *Oliver v. United States*, 466 U.S. 170, 104 S. Ct. 1735, 80 L. Ed. 2d 214 (1984); *Hester v. United States*, 265 U.S. 57, 44 S. Ct. 445, 68 L. Ed. 898 (1924).

B. Washington Law

1. Washington Constitution, Article I, § 7
 - a. Provides greater protection than the Fourth Amendment.
 - b. “Open fields” doctrine rejected. *State v. Myrick*, 102 Wn.2d 506, 512, 688 P.2d 151 (1984).
 - c. Nature of the property viewed is one factor in determining whether police unconstitutionally intruded into a person’s private affairs. *State v. Myrick*, 102 Wn.2d 506, 512, 688 P.2d 151 (1984).
 - d. View of residential property from fixed-wing aircraft at 800 feet above ground does not violate Art. I, § 7. *State v. Cockrell*, 102 Wn.2d 561, 689 P.2d 32 (1984).
 - e. View from fixed-wing aircraft at 500 feet above ground in non-congested area, without use of vision enhancement device, does not violate Art. I, § 7. *State v. Wilson*, 97 Wn. App. 578, 988 P.2d 463 (1999) (FAA regulations allow plane to fly at that altitude, therefore police used lawful vantage point).
2. Statutes

No Washington statutes govern this type of surveillance.

3. Binoculars and enhanced still photography

State v. Wilson, 97 Wn. App. 578, 988 P.2d 463 (1999), does not explain why it emphasized that investigators in that case did not use vision enhancement devices. Courts faced with this issue will likely consider the following cases to determine whether a constitutional violation occurred: *State v. Manly*, 85 Wn.2d 120, 530 P.2d 306 (1975), *cert. denied* 423 U.S. 855 (1975) (approved police use of binoculars to confirm what could otherwise lawfully be seen with the naked eye), *cited with approval in State v. Rose*, 128 Wn.2d 388, 394-395, 909 P.2d 280 (1996); *State v. Jones*, 33 Wn. App. 275, 277, 653 P.2d 1369 (1982), *review denied*, 99 Wn.2d 1003 (1983) (use of binoculars to view at a distance that which could have lawfully been observed by police from a closer proximity, but for the desire to avoid detection by the suspects, violates neither the Fourth Amendment nor its counterpart in the Washington Constitution).

4. Video recording

In addition to the above-cited cases, prosecutors and investigators should carefully consider case law and analysis specifically focused on video interception. See section XVII, *infra*.

XI. CELLULAR AND CORDLESS PHONE

Can you intercept the audio portion of a cellular or cordless phone conversation by capturing the radio waves?

A. Federal Law

Cellular and cordless conversations involve an "aural transfer made in whole or in part through the use of facilities for the transmission of communications by the aid of wire" (18 U.S.C. § 2510, *et. seq.*), so they are subject to Title III. Any interception or recording is a federal crime (ask Congressman McDermott) unless it is by law enforcement with a court wiretap order.

B. Washington Law

1. Interception of audio conversations

This interception is governed by RCW 9.73. Need court order or other exception, discussed *infra*, to intercept the conversation.

State v. Faford, 128 Wn.2d 476, 910 P.2d 447 (1996), *reconsideration denied* (1996), says that if a cordless conversation would be private if by wire, then it is a private communication despite the use of a cordless phone and is protected by RCW 9.73. If a cordless phone call is protected, then a cellular phone call also will be protected.

2. Seized cellular phone - incoming calls

Can take advantage of lawfully seized cellular phone by leaving it on and answering incoming calls. *See State v. Gonzales*, 78 Wn. App. 976, 900 P.2d 564 (1995), *review denied*, 128 Wn.2d 1020 (1996) (Officer answered phone while in defendant's residence. No legitimate expectation of privacy in incoming phone calls when person answering the call is legitimately on the premises).

- a. Not a search.
- b. Not a violation of RCW 9.73.

3. Seized cellular phone - stored data

No Washington Case Law. Akin to search of pager for data. Search warrant likely required.

4. Seized cellular phone - stored messages

See Voice mail, section XVIII., *infra*.

C. Cellular Antenna Tower Data

When making and receiving calls, cellular telephones exchange data with nearby cellular antenna towers. This information is available to the cellular service provider and provides real-time information about the general location of the cellular telephone.

1. Police acquisition of cellular antenna data (“cell tower data”) is not an interception of oral or aural communication, so not a wiretap under federal law. *United States v. Forest*, 355 F.3d 942 (6th Cir. 2004).
2. Cell tower data *may* constitute “electronic communication” but suppression remedy of 18 U.S.C. 2510 et. seq. Only applies to oral and aural communications. *United States v. Forest*, 355 F.3d 942 (2004).
3. No decisive case law regarding lawfulness of police placement of call to cellular telephone (“pinging” the phone) to cause it to send a signal to a nearby cell tower and to the cellular service provider regarding the cell phone’s location. *United States v. Forest*, 355 F.3d 942 (6th Cir. 2004) asked but did not resolve whether this would turn the cell phone into a tracking device. At a minimum this technique would require a search warrant, Special Inquiry Judge subpoena, or trial subpoena directing the service provider to provide the cell tower data.

XII. E-MAIL AND INSTANT MESSAGING

A. Federal Law

1. Constitutional analysis

Several federal cases conclude that the sender of an e-mail message does not have a constitutionally recognizable reasonable expectation of privacy in the contents of that message *once it has been received, e.g., when it is on the addressee recipient’s computer*. For more detailed discussion, see the federal guidelines titled *Searching and Seizing Computers and Obtaining Electronic Evidence in Criminal Investigations*,
<http://www.usdoj.gov/crimina>
[l/cybercrime/s&smanual2002.htm](http://www.usdoj.gov/crimina/cybercrime/s&smanual2002.htm).

2. 18 U.S.C. § 2701 et. seq.
 - a. E-mail that is passing through or stored on an Internet Service Provider’s (ISP) computers is covered by the Electronic Communications Privacy Act (ECPA), 18 U.S.C. § 2701, et. seq. The ECPA protects "any

temporary, intermediate storage of wire or electronic communication incidental to the electronic transmission thereof or any backup of this communication." In plain English, any unread or unheard message, and any backups on the e-mail server are protected. The Federal Guidelines, referenced above, thoroughly discuss access to e-mail.

- b. A search warrant is always sufficient authority to compel an ISP to disclose e-mail. Lesser authority can be used in certain specific circumstances. See section III. F. of the above referenced federal guidelines for details on the use of that lesser authority (also included as Appendix D to this outline).
- c. Types of e-mail and internet account information law enforcement might seek from an ISP:
 - (1) Basic Subscriber/Customer Information
 - (a) Includes 1) name; 2) address; 3) local and long distance telephone connection records, or records of session times and durations; 4) length of service (including start date) and types of service utilized; 5) telephone or instrument number or other subscriber number or identity, including any temporarily assigned network address; and 6) means and source of payment for such service (including any credit card or bank account number). This list does not include other, more extensive transaction-related records, such as log information revealing the e-mail addresses of persons with whom a customer corresponded during a prior session.
 - (b) Per 18 U.S.C. § 2703(c)(2), this information can be obtained from an ISP by standard subpoena, consent, or search warrant.

- (2) Expanded Subscriber And Transactional Information
 - (a) Expanded subscriber and transactional information can include account logs that record account usage (for example, the date, time, user, and detailed internet address of sites accessed); e-mail addresses of other individuals with whom the account holder has corresponded.
 - (b) Law enforcement must obtain a search warrant or 18 U.S.C. § 2703(d) court order, or subscriber consent, to obtain most account logs and most transactional records. Message content cannot be obtained under this provision. Requirements for a § 2703(d) order are discussed at section III. D. in the above referenced federal guidelines.
- (3) E-mail Headers On Messages To And From A Particular E-mail Address
 - (a) E-mail “headers” include the sender, recipient, and ISP addresses. 18 U.S.C. § 2703 addresses only disclosure of the “contents” of a stored electronic message. It does not address disclosure of sender/recipient information. Arguably, 18 U.S.C. § 2703 is not applicable when law enforcement wants to obtain e-mail headers.
 - (b) Whether a pen register and/or trap and trace can lawfully grant authority to obtain e-mail headers is not tested. However, several experienced local and federal prosecutors believe this approach is sound because the sender/recipient information is analogous to the

information obtained via pen register and/or trap and trace on a traditional telephone line. The statutory definitions of both pen register and trap and trace reference recording or decoding “electronic or other impulses” that identify the sender/recipient of communications. Other portions of the statute include serving a pen register and/or trap and trace order on providers of electronic communications service. By specifically referencing electronic communications, the statute appears to include the obtaining of e-mail header information.

- (4) Contents of e-mail
 - (a) Law enforcement can always compel an ISP to disclose contents of e-mail with a search warrant.
 - (b) What lesser legal authority is also sufficient depends on whether the e-mail is opened or unopened, and whether it has been on the ISP server for 180 days or less, or for longer than 180 days. *See* Appendix D, *infra*, for a quick reference guide.
- (5) Practice Tip: Consider issuing a “preservation letter” under 18 U.S.C. § 2703(f). Upon receipt of a request from a governmental entity, the ISP “shall take all necessary steps to preserve records and other evidence in its possession pending issuance of a court order or other process.” The ISP must retain the material for 90 days, plus 90 days more upon receipt of a renewed preservation letter.
 - (a) But Beware - your preservation letter could result in the target e-mail account

being shut down and/or the client being notified.

- (b) We recommend that you CALL the ISP BEFORE issuing your preservation letter to learn what action they will take. While you are talking with them, also consider asking whether they want you to include any specific language or terms of art in your preservation letter; whether they still own the target IP address; and how long it will take them to comply with 1) the preservation letter; and 2) the warrant/order compelling disclosure. The above referenced federal guidelines have a sample preservation letter at Appendix C.
- (c) Practice Tip: Be aware that, with the passage of the Patriot Act in 2001, Congress clarified that e-mail is regulated by the ECPA, not the Wiretap Act. Thus, the Patriot Act effectively overruled some prior case law. However, Washington's pen register, trap and trace statute, RCW 9.73.260, retains the ambiguous pre-Patriot Act language.

B. Washington Law

1. No Washington cases discuss compelled disclosure of e-mail.
2. E-mail is a "communication" that is considered "private" within the meaning of RCW 9.73, but no court order under this statute is needed before the addressee-recipient can save and print the *received* messages, because the sender implicitly consented to recording of the sent message. The nature of e-mail is such that, to be useful, it must be recorded in the recipient computer's memory. The sender also implicitly consents to recording of 'chat' or instant messaging communications where the software provider's policy expressly warns users that their messages could be recorded or forwarded to others. *State v. Townsend*, 147 Wn.2d 666, 57 P.3d 255

(2002).

3. Note: In *Townsend*, law enforcement was the recipient of the defendant's e-mail, so law enforcement consented to save, print, and disclose the messages. The case does not address what authority is required if the addressee-recipient of the e-mail does not consent to its disclosure to law enforcement.
4. Query: If the sender consents to recording of the sent message, and if the recipient has set up e-mail to receive messages, does the recipient also consent to recording of the same message? If both parties have consented to recording of the message, does that mean police can search the computer without concern for violating RCW 9.73? Is the consent limited to the recording on the recipient's computer, or does it extend to any other computer the message is recorded in (for example network servers)? These questions were not addressed by *State v. Townsend*, 147 Wn.2d 666, 57 P.3d 255 (2002).
5. Caution: *Townsend's* conclusion that the sender consented to recording of "chat" or instant messaging rested on the software provider's notice to users that recording could occur. If there is no such notice, but recording does occur, then is RCW 9.73 violated? If so, this evidence will likely be suppressed. See *State v. Faford*, 128 Wn.2d 476, 910 P.2d 447 (1996), *reconsideration denied* (1996).
6. Clearly, compliance with the ECPA is required.

XIII. PAGERS - DIGITAL AND VOICE

A. Federal Law

Are subject to Title III. Any non-consensual interception is a wiretap or bug.

B. Washington Law

1. Interception

Based on *State v. Faford*, 128 Wn.2d 476, 910 P.2d 447 (1996), *reconsideration denied* (1996), probably subject to RCW 9.73.

2. Clone pager

Use of a clone pager to intercept duplicate messages (usually of the pager given to police informant) is a Title III interception. Therefore requires a Title III wiretap order. *Adams v. City of Battle Creek*, 250 F.3d 980 (6th Cir. 2001), *rehearing denied*.

3. Seized pager - incoming messages

Can take advantage of a lawfully seized pager by leaving pager on to see new pages as they come in.

- a. Not a search.
- b. Not a violation of RCW 9.73.

State v. Wojtyna, 70 Wn. App. 689, 855 P.2d 315 (1993), *review denied*, 123 Wn.2d 1007 (1994). Police seized a pager incident to arrest of a coke dealer. They left it on and returned pages, including one from *Wojtyna*, who arranged to buy drugs. The court said "somebody else may answer the pager just as somebody else may answer a phone. They're not intercepting anything. It may be a ruse to answer a pager and act like a dealer, but that's not a violation of the statute."

4. Seized pager - stored data

Some pagers store earlier pages received. Can you view/seize data stores in a pager's memory? No Washington case law. **CAUTION!!!** Even though those pages can be retrieved by pushing a button on the pager, you should **GET A WARRANT**, unless there are exigent circumstances or other exception to the warrant requirement. There is no Washington case law on this issue, but *United States v. Reyes*, 922 F. Supp. 818 (S.D.N.Y. 1996) came to the following conclusions, using a Fourth Amendment analysis:

- a. Obtaining stored pages is *not* an interception. Thus a Title III order is not required. But it *is* a search, so Fourth Amendment principles apply.

- b. A warrant is required to access pages stored in a pager, unless there is an exception to the warrant requirement.
- c. A pager may be searched incident to arrest, similar to searches of containers incident to arrest.
- d. A pager may be searched with consent.
- e. A pager may be searched if exigent circumstances exist, including the possibility that new pages may come in and erase stored pages. This applies only if pager was on when seized. If the pager is off, police can't create exigent circumstances by turning it on. Rather, they must obtain a warrant.

XIV. Pen Register Trap and Trace

A. Technology

When a telephone call is made, two “messages” are sent to the telephone company: 1) the numbers dialed, and 2) the number from which the call is initiated. The telephone company also gets information about the time the call was made, length of the call, and any special calling features used. When a cellular telephone is used, the data also identifies the general physical location of the cell phone, based on which cell site or cell tower is in use during the call.

B. Pen Register/Trap And Trace Can Be Critical Investigative Tools

- 1. To locate people in kidnapping/runaway/extortion cases and to provide leads to identify and apprehend criminals in those cases.
- 2. To locate defendants and missing children in custodial interference cases.
- 3. To locate both charged and uncharged fugitives.
- 4. To locate a cell phone.
- 5. To identify and locate potential suspects or witnesses.

6. To show telephone links among co-conspirators.
7. To identify a computer hacker and to build a case.
8. To provide important investigative leads in an investigation. For a good example, see *State v. Gunwall*, 106 Wn.2d 54, 720 P.2d 808 (1986).
9. Although the telephone companies and police have a regular way of dealing with the typical threatening or harassing telephone calls, a trap and trace device can be employed in egregious cases.

C. Definitions

1. Pen Register

- a. When attached to a particular phone line, a pen register captures and records, in real time:
 - (1) the date and time the telephone is taken off the hook;
 - (2) all numbers and symbols dialed; and
 - (3) the date and time the telephone is placed back on the hook.
- b. Statutory definition excludes device used by phone company for billing, recording incident to billing, cost accounting, etc. See RCW 9.73.260(1)(d) .
- c. Equipment necessary for a pen register is generally owned by law enforcement. It is installed either by a phone company employee, or by law enforcement under the direction of the phone company employee. The device installed acts like a bridge between the target telephone line and a line that the phone company provides to law enforcement. Law enforcement can then dial that line and download the pen register information.

2. Trap and Trace Device

- a. Captures and records in real time numbers identifying the telephone making the call, the date and time the call is made, and should identify any long distance carrier.
- b. In most cases this "device" is actually a special program executed by the telephone company's computer switching equipment. The telephone company then provides law enforcement with reports of the information gathered.

D. Federal Law

1. Constitution

Not a "search" within meaning of Fourth Amendment. *Smith v. Maryland*, 442 U.S. 735, 99 S. Ct. 2577, 61 L. Ed. 2d 220 (1979) (pen register).

2. Statutes

- a. 18 U.S.C. §§ 3121-3127. General rule: It is unlawful to use a pen register or trap and trace device without a court order.
- b. 18 U.S.C. §§ 3121-3127. Sets the minimum requirements that must be complied with. A court order is required, but it requires only a minimal showing: The identity of the Government attorney making the application, the identity of the law enforcement agency conducting the investigation, and a statement under oath that the information likely to be obtained is relevant to an ongoing criminal investigation being conducted by the agency.
- c. Note: Washington's statute is modeled on the federal statute with four important additional requirements:
 - (1) We must show probable cause that the device will lead to evidence or finding certain people.

- (2) We must show (not just state) that the device is likely to produce evidence relevant to an ongoing criminal investigation.
 - (3) We can obtain installation for only one, or at most two, 60-day periods.
 - (4) Our superior court judges must file an annual report with the Administrator for the Courts. Therefore the system established in each county should facilitate easy and accurate annual reporting by the judges.
- d. Not regulated by Title III. *United States v. New York Telephone Co.*, 434 U.S. 159, 98 S. Ct. 364, 54 L. Ed. 2d 376 (1977) (pen registers).

E. Washington Law

1. Constitution

Use of a pen register is an invasion of “private affairs,” therefore governed by Const. art. I, § 7 of the Washington Constitution. *See State v. Gunwall*, 106 Wn.2d 54, 720 P.2d 808 (1986). Although not decided, it is likely, based on *Gunwall*, that a non-consensual trap and trace will also be held to involve “private affairs” and therefore also be subject to Const. art. I, § 7.

2. Statutes

General Rule: Use of a pen register or trap and trace device is prohibited except in compliance with RCW 9.73.260. See section XIV. F. through J., *infra*, for details.

F. By Court Order

RCW 9.73.260(4) and (5)

- 1. Superior Court only
- 2. Required contents of application

- a. Must be under oath by a law enforcement officer. *See* RCW 9A.72.085 for oath format.
- b. Identify officer and officer's agency.
- c. Statement (same as federal requirement), plus a showing that information likely to be obtained is relevant to an ongoing criminal investigation being conducted by the agency.
- d. Showing of probable cause that device will lead to:
 - (1) "Obtaining evidence of a crime, contraband, fruits of crime, things criminally possessed, weapons, or other things by means of which a crime has been committed or reasonably appears about to be committed," or
 - (2) "Learning the location of a person who is unlawfully restrained; reasonably believed to be a witness in a criminal investigation; or for whose arrest there is probable cause."
- e. Practice Tip: Application should contain facts supporting a court order directing the telephone company to provide subscriber information for all telephone numbers identified by the pen register or trap and trace.

3. Required contents of order

- a. Finding that information likely to be obtained is relevant to an ongoing criminal investigation.
- b. Finding of probable cause that device will lead to obtaining evidence or location of person.
- c. State identity of telephone customers and suspect, if known.
- d. State number and physical location of telephone, if known.

- e. Geographic limits of trace (in case of trap and trace order).
- f. State offense being investigated.
- g. Order may direct phone company to assist, if requested in application.

But note: Whereas the statute requires the phone company to install a trap and trace and provide information, the statute only requires the phone company provide access and assistance for pen registers. RCW 9.73.260(5) . Our experience is that the phone company provides the trap and trace equipment, but requires law enforcement to supply the pen register equipment.

- h. Order authorizing cannot exceed sixty days.
- i. Can be extended only under extraordinary circumstances:
 - (1) One extension with a showing that probability of success is higher than under the original application;
 - (2) Additional extensions only with a showing of "high probability" that information sought is "much more likely to be obtained" and "there are extraordinary circumstances such as direct and immediate danger of death or serious bodily injury to a law enforcement officer."
- j. Practice Tip: The order should also direct the telephone company to provide subscriber information for all telephone numbers identified by the pen register or trap and trace.
- k. Secrecy: The order (and logically the application?) are sealed until otherwise ordered by the court, and telephone company employees may be directed not to

disclose.

4. Phone company must be reasonably compensated for assistance

Practice Tip: Law enforcement might want to negotiate the \$\$ figure for the "reasonable compensation" before these costs are incurred.

5. Judges must file an annual report

G. Locating A Cell Phone

Each cell phone has a unique identifier code used by service providers to route calls to and from the phone, and to compute billing. A pen register/trap and trace order can be used to obtain calling information and the location of the phone. This has been critical in several hostage/kidnap situations.

If you are trying to locate someone by locating their cellular telephone, your application should tell the court that the cell phone provider can tell you which of its cell sites is being used by the phone. The order should require the company to provide real-time cellular site location data, including sector, for the cell phone.

H. Practice Tips

1. Talk to the phone company before obtaining the order

What equipment will they provide? Any specific language they want in the order? Do they see any functional issues with your proposed approach? How does frequency of reporting affect cost? How does size of geographic area covered by a trace affect cost? Negotiate costs. Be prepared to tell the phone company who to bill for their service, and to give them a contact name for billing purposes.

2. Reporting frequency language in order

"Reasonable intervals during regular business hours" is the usual, standard language. "On a 24-hour basis" should be used only if there is an emergency or other special circumstance.

3. Geographic area language in order

When doing a trap, the phone company needs to know how far you want them to trace a call. The further away from the source, the more expensive the trace. For example: "from any location within the United States" or "without respect to geographic limitations" are very broad. These may lead the phone company to negotiate with the police exactly where they place various traps in their system. Depending upon the facts of your case, narrower geographic limits could include a particular phone exchange, city, area code or codes, or state or states.

4. Call forwarding, three way calling, other custom calling features

Your application should specify these features and request the court to order the phone company to provide all related information. Example application language: "The numbers involved in this application or identified by the pen register and trap and trace installed pursuant to this application may have custom calling features such as call forwarding, three way calling, call waiting, and speed calling that can be used to disguise the source of calls or who is receiving the calls. I request the court also order (phone company name) and any other communications common carrier to provide all custom calling features associated with (subject telephone number) and all telephone numbers obtained by the pen register and trap and trace installed pursuant to this application."

5. Subscriber information

Order should also direct telephone company to provide subscriber information on all telephones identified by the pen register/trap and trace. The application should contain justification for this part of the order.

6. Extensions of order

Some phone companies charge extra if they don't receive an extension order until after the prior order has expired and the equipment has already been removed.

I. Without RCW 9.73.260 Order

1. Historic calling records

If not needed in real time, telephone toll records can be obtained with 1) the phone customer's consent; 2) search warrant; or 3) subpoena. The phone company will only provide records for calls billed, generally, long distance calls dialed from landlines, and all calls dialed from cell phones.

2. By the telephone company

18 U.S.C. § 3121(b); RCW 9.73.070; *State v. Riley*, 121 Wn.2d 22, 846 P.2d 1365 (1993).

- a. The telephone company can install without a warrant to protect itself and its customers from hackers, toll fraud, extortionate calls, harassing calls, etc.
- b. Law enforcement usually can obtain this information from the telephone company if there is a criminal investigation.

3. Caller ID/*57

RCW 9.73.070(2)(a) authorizes citizens to initiate call traces from their telephones (though not all telephones have this service).

Whenever possible, the preferred way for police to accomplish a trap and trace is to use Caller ID and/or "*57," called a customer-originated trace. Caller ID or *57 can be used when the person receiving the call is cooperating with law enforcement. To use *57, break the connection with the caller you want to trace, obtain a dial tone, dial *57, and follow the directions given on the telephone in response to *57. You must dial *57 before making or receiving another call. The calling number can be made available immediately, and subscriber information can be provided on an emergency basis, even for a non-published listing. For additional information, consult the QWEST Law Enforcement Agency Guide, available to law enforcement by calling (303) 244-1300.

4. Emergencies without a court order

RCW 9.73.260(6)(a) authorizes installation and use of pen registers and trap and trace devices in emergency situations with the following restrictions:

- a. Joint determination by law enforcement officer and prosecutor.
- b. Reasonably determine probable cause to believe that there is an emergency threatening immediate danger of death or serious bodily injury.
- c. There is not time using due diligence to obtain a court order, but there are grounds to obtain a court order.
- d. Must obtain an order within 48 hours.
 - (1) Must stop using device when:
 - (2) Have obtained information needed;
 - (3) Judge denies application; or
 - (4) 48 hours has passed (if no judicial order issued).
- e. Knowing violation of emergency provisions is a gross misdemeanor.
- f. Police must file a monthly report with the Administrator for the Courts. Detailed content requirements. RCW 9.73.260 (6)(b).

J. Use And Admissibility under RCW 9.73 Of Federally Obtained Pen Registers And Trap And Trace Devices

1. Pen Register

Probably intercepts a “private communication transmitted by telephone,” as that term is used in RCW 9.73.030. *See State v. Gunwall*, 106 Wn.2d 54, 720 P.2d 808 (1986) (strong dicta). This means that evidence derived from federally obtained pen registers within Washington State borders may be used to

support a Washington search warrant, but will not likely be admissible in a Washington state court unless the pen register application complied with RCW 9.73. See section IV. E., *infra*, for detailed discussion.

2. Trap and Trace

Does not intercept a “private communication” under RCW 9.73.030. *State v. Riley*, 121 Wn.2d 22, 846 P.2d 1365 (1993). Therefore RCW 9.73.030 does not apply to admissibility of federally obtained trap and trace evidence.

XV. THERMAL IMAGING

A. No Statutory Guidance

B. Federal Case Law - Search Warrant Needed

Obtaining information from within a home that would be unknowable without sense-enhancing technology “at least where the technology in question is not in general use,” is a search. “[T]he Fourth Amendment draws a firm line at the entrance to the house. That line, we think, must be not only firm but also bright.” *Kyllo v. United States*, 533 U.S. 27, 40, 121 S. Ct. 2038, 150 L. Ed. 2d 94 (2001) (rejecting all distinctions between off-the-wall emanations and through-the wall observation).

C. Washington Case Law - Search Warrant Needed

Thermal imaging, or thermal surveillance of a residence is a search because its use provides police with information about activities *inside* a residence that they otherwise could not know without a search warrant or some other legal means of physical entry. Therefore a search warrant must be obtained before this technology is used. *State v. Young*, 123 Wn.2d 173, 867 P.2d 593 (1994).

XVI. TRACKING DEVICES/RADIO TRANSMITTERS/BUMPER BEEPERS/BIRD DOGS/GPS DEVICES

A. Definition

1. Miniature radio transmitter attached to an object and used in conjunction with a direction finding receiver or receivers to allow tracking and location of the object; or
2. Device using a global positioning system (GPS) in conjunction with a receiver to allow tracking and location of an object.

B. Federal Law

1. No statute
2. Fourth Amendment

Whether installation or monitoring of a tracking device constitutes a Fourth Amendment search rests upon a reasonable expectation of privacy analysis. Most federal cases employ a two-step analysis:

- a. Is installation of the transmitter a trespass such that a warrant is required? and
 - b. Does monitoring the signals or locating the object violate reasonable expectations of privacy
 - (1) in public places?
 - (2) in private places?
3. Use caution

As the United States Supreme Court observed: “[W]arrants for the installation and monitoring of a beeper will obviously be desirable since it may be useful, even critical, to monitor the beeper to determine that is it actually located in a place not open to visual surveillance... [S]uch monitoring without a warrant may violate the Fourth Amendment.” *United States v. Karo*, 468 U.S. 705, 104 S. Ct. 3296, 3302, 82 L. Ed. 2d 530 (1984).

4. Authority to issue tracking device warrant

When the Fourth Amendment is implicated, FRCP⁵ 41 authorizes a federal court to issue warrants for use of tracking devices. *United States v. Gbemisola*, 225 F.3d 753 (D.C. Cir. 2000).

C. Washington Law

1. No statute; Privacy Act does not apply

Washington's Privacy Act does not apply to electronic signals from a tracking device because no communication is involved. *State v. Jackson*, 150 Wn.2d 251, 76 P.3d 217 (2003)(see footnote 1).

2. Constitutional analysis - installation

a. Vehicles

A warrant is needed to install a GPS tracking device *into* vehicle (connecting it to the car's battery) that was previously seized pursuant to search warrant. *State v. Jackson*, 150 Wn.2d 251, 76 P.3d 217 (2003) (2003) (Intrusion into private affairs made possible by a GPS device is "quite extensive").

b. Other Objects

No Washington law. No warrant required under 4th Amendment where tracking device in place prior to possession by the target, or installed with consent of present possessor. *United States v. Knotts*, 460 U.S. 276, 280, 103 S. Ct. 1081, 1084, 75 L. Ed. 2d 55 (1983). *But see People v. Oates*, 698 P.2d 811 (1985) (under the more protective Colorado *state* constitution, a "legitimate expectation of privacy encompasses the expectation that purchased commercial goods will be free of government surveillance services such as beepers"). **USE CAUTION -- GET A PAPER!!**

3. Constitutional analysis - monitoring

⁵ Federal Rule of Criminal Procedure

a. Vehicle

Monitoring of GPS to reveal public travels of a vehicle intrudes upon a person's private affairs. *State v. Jackson*, 150 Wn.2d 251, 76 P.3d 217 (2003). This Opinion likely applies with equal force to radio transmitter devices. (Note *Jackson's* heavy reliance on *State v. Campbell*, 206 Or. 157, 759 P.2d 1040 (1988), a case involving use of a radio transmitter device installed on the exterior of a vehicle.

b. Other Objects

No Washington law. Warrant required under 4th Amendment where monitoring of tracking device after the item on which it is installed has been removed from public view constitutes a search. *United States v. Karo*, 468 U.S. 705, 104 S. Ct. 3296, 82 L. Ed. 2d 530 (1984). Anticipate stricter analysis under Art. I § 7 and *State v. Jackson*, 150 Wn.2d 251, 76 P.3d 217 (2003). **USE CAUTION – GET A PAPER!!**

4. Authority to issue tracking device warrant

- a. *State v. Jackson*, 150 Wn.2d 251, 76 P.3d 217 (2003), accepted the warrants obtained there, implicitly approving the court's authority to issue tracking device warrants. Additionally, Washington's CrR 2.3 establishes the authority and procedure by which Washington courts issue and manage search warrants. This rule is virtually identical (differences appear immaterial to this discussion) to FRCP 41, the authority relied on by federal courts. *See also*, RCW 10.79.020.

D. Contents Of Affidavit And Warrant

1. Affidavit

Fourth Amendment particularity requirement is satisfied with the following affidavit content, in addition to standard probable cause showing:

- a. description of the object into/onto which the tracking

device is to be placed;

- b. description of the circumstances that led investigators to want to install the tracking device;
- c. probable cause to believe that installation of the device will lead to evidence of the specified crime (nexus);
 - i. Assertions that criminals return to the scene of their crime fails to establish the required nexus. *State v. Jackson*, 150 Wn.2d 251, 267, 76 P.3d 217 (2003).
- d. request for authority to monitor the tracking device for a specified length of time. *State v. Jackson*, 150 Wn.2d 251, 268, 76 P.3d 217 (2003); *United States v. Karo*, 468 U.S. 705, 718, 104 S. Ct. 3296, 82 L. Ed. 2d 530 (1984).

2. Warrant

Should contain, in addition to standard language:

- a. Definite time limit for monitoring the tracking device.
 - (1) Two subsequent 10-day periods approved. *State v. Jackson*, 150 Wn.2d 251, 76 P.3d 217 (2003). 90 days approved, but not tested, *United States v. Webster*, 750 F.2d 307 (5th Cir. 1984);
 - (2) CrR 2.3 requires that search warrants be served within 10 days.
 - (3) We recommend a maximum 10-day limit for monitoring an installed tracking device, renewable by reapplication to the court.
- b. Authority to install.
 - (1) Law enforcement “may break and enter to execute a search warrant where such entry is the *only* means by which the warrant effectively may be executed,” even if the order does not explicitly

authorize the entry. *See United States v. Webster*, 750 F.2d 307 (5th Cir. 1984), *cert. denied*, 471 U.S. 1106 (1985) (emphasis added), *citing Dalia v. United States*, 441 U.S. 238, 99 S. Ct. 1682, 60 L. Ed. 2d 177 (1979) (approving covert entry to execute surveillance order). However, the safer course is to obtain specific authority to enter private property to install, maintain, and remove equipment;

- c. Authority to monitor; and
- d. Authority to maintain, change batteries, remove equipment.

E. Return With Inventory

- 1. CrR 2.3 states: “The peace officer *taking property* under the warrant shall give to the person from whom or from whose premises the *property is taken* a copy of the warrant and a receipt *for the property taken...*” (emphasis added). This rule also requires that a “return shall be made promptly and shall be accompanied by a written inventory of any property taken.”
- 2. An inventory is probably not technically required by this rule. The purpose of the rule is to notify the citizen what property has been taken and where it is being held. There won’t be any property taken by a tracking device.
- 3. However, if feasible in the case under investigation, the investigator should avoid any issue by completing and filing with the court a “return” stating: a) that a tracking device was installed and monitored between specified dates; b) if applicable, the dates on which surreptitious entry was made onto private property; and c) that no property was taken.

F. Consider Sealing The Affidavit, Warrant, And Inventory

See section XIX., *infra*.

G. Use At Trial

- 1. Frye hearing not needed

At least not for the tracking system used in bank robberies. Reason: Tracking system does not involve novel scientific theory. Rather, it employs common technology involving transmission and reception of radio signals plus objective observation of information received from the device. *State v. Vermillion*, 112 Wn. App. 844, 862-863, 51 P.3d 188 (2002).

2. Authentication of tracking system

Tracking system authenticated where prosecution presented evidence detailing how the system worked; how long it had been in common use; regarding the frequency of calibration and testing; and that the nature of the signal is such that police will not accidentally track a signal broadcast by something else. *State v. Vermillion*, 112 Wn. App. 844, 863, 51 P.3d 188 (2002).

XVII. VIDEOTAPING (WITHOUT SOUND)

“Hidden video surveillance is one of the most intrusive mechanisms available to law enforcement. The sweeping, indiscriminate manner in which video surveillance can intrude upon us, regardless of where we are, dictates that its use be approved only in limited circumstances.” *United States v. Nerber*, 222 F.3d 597 (9th Cir. 2000).

A. Federal Law

1. No statute

Title III does not mention video surveillance.

2. Fourth Amendment (and therefore Article I, § 7)

Applies if the video surveillance is an invasion of private affairs, reasonable expectation of privacy. Test is whether the person had a subjective expectation of privacy that is one society is prepared to recognize as reasonable. Due to the “severe intrusion” of video surveillance, courts will find an expectation of privacy where they might not otherwise. *See United States v. Nerber*, 222 F.3d 597 (9th Cir. 2000) (videotaping suspects in hotel room rented by agents, after informant left, was invalid without a warrant).

“A person has a stronger claim to a reasonable expectation of privacy from video surveillance than against manual search.” *United States v. Gonzalez*, 328 F.3d 543 (9th Cir. 2003) (noting also that, depending on the circumstances, a person can have a legitimate expectation of privacy in a commercial area).

3. Reasonableness of privacy expectations

The vantage point of the surveillance may affect the reasonableness of privacy expectations. *See Cowles v. State*, 23 P.3d 1168 (AK Sup. Ct. 2001) (observing in dicta that person in doorless restroom stall has reasonable expectation of privacy from overhead surveillance, but not from surveillance through the doorless opening).

No reasonable expectation of privacy when consenting informant is present during videotaping because non-consenting person bears the risk that the government is monitoring his/her activities with an informant. *United States v. Nerber*, 222 F.3d 597, 606 (9th Cir. 2000); *United States v. Shryock*, 342 F.3d 948, 979 (9th Cir. 2003); *United States v. Davis*, 326 F.3d 361 (2nd Cir. 2003) (Informant video recorded drug transaction with Davis inside Davis’s residence – limited to areas within informant’s view).

4. Authority to issue video surveillance warrant

Federal courts uniformly hold that, when the Fourth Amendment is implicated, FRCP⁶ 41 authorizes a court to issue warrants for video surveillance. (Three federal courts additionally rely on other authority.)

B. Washington Law

1. No statute

No state of Washington cases address hidden video surveillance, except to say that RCW 9.73 does not apply if there is no sound recording.

⁶ Federal Rule of Criminal Procedure

2. A recognized, accepted tool

Courts have however recognized that “[p]olice officers have long availed themselves of photographic and visual surveillance techniques.” *State v. Raymer*, 61 Wn. App. 516, 810 P.2d 1383 (1991), *review denied*, 117 Wn.2d 1022 (1991); *see also*, *Haymond v. DOL*, 73 Wn. App. 758, 872 P.2d 61 (1994).

3. Authority to issue video surveillance warrant

- a. No Washington case has considered the authority by which courts issue video surveillance warrants.
- b. CrR 2.3 establishes the authority and procedure by which Washington courts issue and manage search warrants. CrR 2.3 is virtually identical to FRCP 41 (differences appear immaterial). See above. If our courts follow the federal lead, they will conclude that CrR 2.3 gives courts authority to issue video surveillance warrants. *See also*, RCW 10.79.020.

4. No surveillance location privilege

- a. Location of video equipment during surveillance, if videotape is made, is *probably* not discoverable - depends upon relevance. *See State v. Reed*, 101 Wn. App. 704, 6 P.3d 43 (2000) (location of observation unlikely to be relevant where a contemporaneous videotape documents the event). However, court rejects surveillance location privilege. Such a privilege would conflict with defendant’s rights of confrontation and cross-examination.
- b. Note: Defendant does not have right to get otherwise irrelevant evidence admitted. *State v. Darden*, 145 Wn.2d 612, 41 P.2d 1189 (2002) (surveillance location in “see-pop” case is relevant, therefore discoverable). State may possibly prevent discovery of surveillance location by choosing not to rely on surveillance officer’s testimony.

C. Best Analysis And Advice

1. Installed in a public place or private place with owner's permission and filming conduct that is in open view of the public (includes a pole camera). No warrant required, but doesn't hurt to get one if you can.
2. Installed in a public place or private place with owner's permission and filming private conduct. Probably need a warrant to film, depending upon expectation of privacy analysis.
3. Installed without owner's permission and filming private conduct. Need a warrant to install and to film.
4. If a warrant is needed, follow requirements set out by federal courts, discussed below.

D. Requirements Of Warrant

1. Federal law

Federal cases considering what is required to satisfy the Fourth Amendment and its particularity mandate uniformly require that video surveillance warrant affidavits and warrants address four specific requirements in addition to probable cause:

- a. A showing/finding that normal investigative procedures have been tried and failed or reasonably appear to be unlikely to succeed if tried or to be too dangerous to employ (the same showing required for one party consent recording, set forth in detail tailored to the facts of your investigation);
 - (1) Some federal courts have required a greater showing of necessity as the subject's reasonable expectation of privacy increases, the greatest being when surveillance is to take place inside a residence;
 - (2) Washington courts may follow suit. Though not considering video surveillance, Washington courts have observed that Const. art. I, § 7 provides greater privacy rights than the Fourth Amendment, and that citizens have a greater

expectation of privacy in their residences than in other locations. *See State v. Young*, 123 Wn.2d 173, 867 P.2d 593 (1994);

- b. A particularized description of the conduct targeted to be filmed and a statement of the particular offense to which it relates;
- c. A definite time period of surveillance that is no longer than needed to accomplish the goals of the investigation;
 - (1) The maximum limit federal courts have placed on video surveillance is 30 days, with extensions permitted. Federal courts do not discuss the selection of this time limit;
 - (2) CrR 2.3 requires that search warrants be served within 10 days. We recommend a maximum 10-day limit on video surveillance, renewable by reapplication to the court;
- d. A statement/requirement that minimization precautions will be taken. The video camera should be positioned and operated (perhaps only at particular times) to minimize the recording of activities unrelated to the targeted crime.

2. Recommendations for application and warrant content

- a. Comply with the federal requirements. The seven federal courts having thus far considered the requirements of video surveillance warrants all agree on the basic requirements outlined above. Washington prosecutors and investigators who endeavor to satisfy these requirements will likely be in the stronger position if the surveillance is challenged. However, since no Washington court has established standards for video surveillance warrants, each prosecutor and investigator must ultimately decide whether to proceed on less than the federal courts require. Use caution and remember the overriding theme of electronic surveillance - ***GET A PAPER!!***

- b. Avoid boilerplate. As our courts have repeatedly advised in the context of one party consent authorizations and search warrants, that they do not like boilerplate. Tailor each application specifically to the facts of the individual case;
- c. Potential additional requirements for warrant: Hobart landfill case - hidden camera in the ceiling of the cashiers' booth at a rural landfill. Judge Anne Ellington (now a Court of Appeals judge) placed the following restrictions on the filming:
 - (1) There could be only one working copy of the videotape in addition to the original, until the case was filed.
 - (2) The working copy had to be placed in the evidence room when not being used.
 - (3) No one except the detectives and the deputy prosecutor working on the case could view the tape without the court's permission.
 - (4) The tapes would be destroyed if charges were not filed.
- d. Surreptitious entry to install, maintain and remove video surveillance equipment.
 - (1) Court authorization must be specifically sought and obtained if investigators are to covertly enter onto private property;
 - (2) Such entry is very touchy and should be sought only as a last resort. We recommend the decision be made by an experienced prosecutor and a command-level police officer.

E. Return With Inventory

1. CrR 2.3 states: "The peace officer *taking property* under the

warrant shall give to the person from whom or from whose premises the *property is taken* a copy of the warrant and a receipt *for the property taken...*" (emphasis added);

2. Though probably not technically required by this rule, we believe our courts will require police to be accountable for how the video surveillance warrant is served;
3. We strongly recommend that the investigator complete and file with the court a "return with inventory" stating that video images were recorded between specified dates, identifying the videotapes used by evidence number, and, if applicable, that surreptitious entry was made onto private property.

F. Consider Sealing The Affidavit, Warrant And Inventory

See section XIX., *infra*.

G. General Caution - Use Great Care With Hidden Video Surveillance

1. Hidden video surveillance has obvious Orwellian overtones, "Big Brother watching."
2. Washington has always been very protective of citizens' privacy rights, most recently in the cases involving searches of trash and use of thermal imaging. You can expect that Washington courts will probably look very carefully, with an eye to suppress, at any evidence obtained through hidden video surveillance. Remember the overriding theme of electronic surveillance: **GET A PAPER!!!**

H. Examples - Warrant Required Or Recommended

1. Hobart landfill cashier's booth. Placed inside booth with consent of owner, possibly filming private conduct. Need a warrant to film.
2. Backyard. Secretly videotaping activities in suspect's fenced backyard (even though can see over/around fence in areas). Need a warrant to film unless taping is extremely brief (minutes). *United States v. Cuevas-Sanchez*, 821 F.2d 248 (5th Cir. 1987).

3. Visitor in an office. Warrantless videotape of suspect visiting the office of another violates his right to privacy, even though suspect has no standing to challenge a search of the office. *United States v. Taketa*, 923 F.2d 665 (9th Cir. 1991).
4. Employee workspace. Probably need a warrant to videotape. Analysis depends upon employee's reasonable expectation of privacy and the nature of the intended intrusion. *See Vega-Rodriguez v. Puerto Rico Telephone Co.*, 110 F.3d 174 (1st Cir. 1997); *Cowles v. State*, 23 P.3d 1168 (AK Sup. Ct. 2001) (warrant not needed where employee's workspace was open to view of both public and co-workers).

I. Examples - No Warrant Needed

1. Evergreen Point Bridge toll takers - videotaping with a long lens from woods north of toll plaza. No different from physical observation with binoculars. Investigators in a public place, but hidden. No warrant required.
2. Hidden camera placed with consent of private party, filming conduct exposed to others, e.g. in a storefront sting buying stolen property, or in the drug-buyer informant's car. Probably don't need a warrant, but caution dictates getting one if possible.

XVIII. VOICE MAIL

A. Federal Law

1. Voice Mail is covered by the Electronic Communications Privacy Act (ECPA), 18 U.S.C. § 2701, *et. seq.*

If a message is left on voice mail furnished by a telephone service provider, then the ECPA governs law enforcement's ability to get it from the service provider. The ECPA does not apply if law enforcement seeks to obtain the voice mail directly from the subscriber via consent.

- a. The Federal Guidelines titled *Searching and Seizing Computers and Obtaining Electronic Evidence in*

Criminal Investigations thoroughly discusses access to voice mail.

<http://www.usdoj.gov/criminal/cybercrime/s&smanual2002.htm>

- b. A search warrant is always sufficient authority to compel disclosure from the service provider. (You can also use a subpoena or an 18 U.S.C. § 2703(d) order, but then you have to give notice to the subscriber.) However, if the service provider is a “non-public” provider, and the voice mail has been opened, then under 18 U.S.C. § 2711(2) a subpoena can be used to compel release of these records.

B. Washington Law

1. RCW 9.73 is waived

The interception and recording prohibition of RCW 9.73 is implicitly waived when a person leaves a voice mail message. *In re Marriage of Farr*, 87 Wn. App. 177, 184, 940 P.2d 679 (1997), *review denied* 134 Wn.2d 1014 (1998) (“Knowing that his messages were being recorded, Martin had no reasonable expectation of privacy.”); *see also State v. Townsend*, 147 Wn.2d 666, 57 P.3d 255 (2002).

2. ECPA applies

Remember to comply with the ECPA, discussed above.

XIX. MOTIONS TO SEAL FILE DURING INVESTIGATIVE PHASE

A. Washington Law

1. *Seattle Times v. Eberharter*, 105 Wn.2d 144, 713 P.2d 710 (1986), involved a partially sealed search warrant affidavit (a redacted version was released) in the Green River homicide investigation. *Eberharter* held that search warrant documents are presumptively public documents, but that courts have common law authority to seal search warrants and related records during the investigative phase of a criminal action when the required *Eberharter* showing (below) is made.

2. Sealing other documents filed during the investigative phase of a case, such as radio transmitter applications and orders, is not discussed in any published Washington opinion, however, the *Eberharter* reasoning should apply.

B. Required Showing

Eberharter established the following ground rules for sealing search warrant documents:

1. The presumption for public filing of search warrant documents can be overcome if the court finds that “a substantial threat exists to the interests of effective law enforcement or individual privacy and safety.”
2. If such a threat exists, court must determine whether these interests can be protected by deletion of the harmful material rather than sealing the file.
3. A judge who considers the relevant factors and potential alternatives will not be overturned absent abuse of discretion.
4. The decision to seal must be subject to public and appellate scrutiny. Therefore, the court must publicly file (1) a transcript of the in camera proceeding, if any; (2) the sealing order; and (3) written findings of fact and conclusions of law supporting the sealing order.

XX. CONCLUSION

A. Unique Kind Of Evidence

1. Electronic surveillance raises sensitive public policy issues and triggers emotional responses from judges, media, and the public.
2. The governing law is complex and technical.
 - a. Constitutional privacy analysis.

- b. Complex state and federal statutory regulation.
 - c. Requires extensive foundation for admission into evidence. Sometimes courts don't understand the technology, and consequently apply the wrong legal analysis.
3. If admitted, electronic surveillance information is highly probative, sometimes overwhelming evidence.

B. Use Of Electronic Surveillance Requires Legal And Technical Expertise, Lots Of Hours Of Work, And Rigorous Adherence To Procedures

C. Remember: Be Very Sensitive To "Big Brother" And "Privacy" Concerns Or Everyone's Time Will Be Wasted And Bad Law Will Result

For example, *see State v. Gunwall*, 106 Wn.2d 54, 720 P.2d 808 (1986).

D. GET A PAPER!!!

XXI. APPENDIX A: OBTAINING A COURT ORDER AUTHORIZING COVERT INTERCEPTION AND RECORDING OF SUSPECT COMMUNICATIONS

A. A Step By Step Guide For Case Detectives

[Does your case qualify legally?

You must have probable cause to believe that the felony under investigation has occurred, is occurring, or is about to occur, and that a communication about the felonious conduct will occur.

At least one person must consent (preferably in writing) to be a party to, and to be recorded during the anticipated communication.

You must have approval from a high ranking officer (above first-line supervisor) to seek a court order authorizing one party consent recording.

[Practical considerations.

Consider your goals and anticipated results for the proposed covertly recorded conversation.

Consider the risks. Is the consenting party capable of conducting the proposed communication? Is there a risk of the target getting suspicious and making self-serving statements on the tape?

Formulate a plan and general outline of points to be covered during the conversation.

Discuss the plan with the consenting person. Make sure the consenting person is comfortable with all aspects of the plan.

If the court requires, are you prepared to notify the target that you sought authority to record his/her conversations?

[What if the target of the proposed covert recording has previously asserted the right to remain silent?

This generally does not prevent use of the one party consent recording, so long as the target has not been charged with the crime under investigation.

[What if the target of the proposed covert recording is represented by counsel?

This generally does not prevent your use of one party consent covert recording so long as:

- 1) The target has not been charged with the crime under investigation or another crime that is part of the same offense, and
- 2) You have not made any promises to counsel regarding your contact with the target other than that you will do what the law allows.

[**Should I discuss my plan to use a one party consent recording with the prosecutor?**

Yes. Electronic surveillance is very controversial, and receives extra scrutiny by the courts, the media, and the ACLU. It is important that electronic surveillance be employed only when appropriate.

Failure to comply with all the technical requirements of the statute can lead to suppression of the recording, suppression of the testimony of everyone who knowingly participated in the recording, suppression of all contemporaneous observations (including visual observations) by everyone who knowingly participated in the recording, and suppression of all fruits of the recording and observations. A faulty court authorization, or no authorization, can destroy an entire case.

The following King County Prosecutors have extensive experience with one party consent applications:

Pat Sainsbury	296-9078	pat.sainsbury@metrokc.gov
Marilyn Brenneman	296-9071	marilyn.brenneman@metrokc.gov
Hank Corscadden	296-9080	hank.corscadden@metrokc.gov
Susan Storey	296-9077	susan.storey@metrokc.gov

The King County Prosecutor's office will not automatically defend orders that were approved by deputies other than these four, or that were not approved by this office at all.

[**How do I complete the application and proposed order? What must these documents contain?**

Any one of the above listed prosecutors can help you with this. When you contact the prosecutor, you should be prepared to discuss:

- 1) The particular felony under investigation; your probable cause to believe the target has committed, is committing or is about to commit the felony; and your probable cause to believe that a conversation about this felony will occur;
- 2) Reasons why "other normal investigative procedures with respect to the offense have been tried and have failed or reasonably appear to be unlikely to succeed if tried, or to be too dangerous to employ." This showing must be made in detail and requires more than a desire to avoid a swearing contest. Explain investigative actions taken so far that have not provided adequate evidence. Explain less intrusive investigative actions considered and rejected as not feasible, and the reasons for rejecting them;
- 3) How much time you need to record, and the reasons why that amount of time should be granted. The court may authorize one party consent recordings for *up to* seven days;
- 4) The specific investigative plan, including whether you contemplate telephone or face to face contact, and where (or using what telephone) you anticipate that will occur.

- 5) If you are using a confidential informant to establish your probable cause, be sure to
a) disclose that person's reason for cooperating and your agreement and promises with that person; and b) include facts demonstrating that the informant is credible, reliable, and that s/he has a basis of knowledge as to the informant's assertions.

[**What else will the prosecutor expect of me?**

You should make arrangements with your department's electronic surveillance technician. Contact that person to discuss and identify the necessary equipment and to ensure the technician's availability. If your department does not have an electronic surveillance technician, discuss this with the prosecutor.

The prosecutor will provide you with the basic format for your application. You must then prepare a draft application for order authorizing a PCR. Take this draft to the prosecutor in both disk and paper format (saved to disk in a format that can be accessed and manipulated by the prosecutor's office).

Allow the prosecutor at least one day to review and finalize the application and order and to make arrangement for a judge to review the documents.

[**How do I begin and end the recording?**

Begin your tape by recording the following on the tape:

- identify yourself;
- identify the case number;
- identify your consenting person;
- state the date; and
- state the time.

If you must turn the recording off, to turn the tape over or for any other reason:

- record the time, and purpose of turning the recording off;
- record the time and date immediately upon recommencing recording.

End your tape by recording the following on the tape:

- Identify yourself;
- state the time;
- state that the recording has concluded.

[**What if the communication does not occur within the time allowed by the court order?**

The law permits the court to authorize both extensions and renewals of one party consent orders for up to seven additional days. An extension must be obtained before your authority to record expires. A renewal is obtained shortly after authority to record expires. (You can also obtain new authority at a later date, but must disclose the prior authority and results. This also doubles the required reporting paperwork.)

Discuss your need for an extension or renewal with the prosecutor. Allow time for the necessary paperwork to be completed.

Your application for an extension or renewal must include the results of the prior recordings/recording attempts; the reasons the extension/renewal is necessary, and reasons for the length of the requested extension/renewal. Be sure to attach and incorporate your previous application(s) to this request.

[**What should I do with the cassette tapes that contain the court authorized recordings?**

Court authorized one party consent recordings must be maintained until a charged case has run its course or the statute of limitations on all matters under investigation has expired.

To comply with this requirement:

1. Immediately after the conclusion of the recording, remove the tabs from the original tape;
2. Make one or more copies to be "play tapes" for transcribing, discovery, etc;
3. Place and maintain the original recordings in your evidence room until no longer required by law to do so.

[**After the recording period expires, what else must I do?**

State law requires three reports be signed by the judge and filed. The first two are due within 30 days after expiration of the order or the last extension/renewal. These are: 1) an inventory signed by the judge and mailed to the subject(s) named in the order and other recorded persons that the judge determines, in the interest of justice, should receive an inventory; and 2) a report signed by the judge and sent to the Administrator for the Courts. The inventory to the subject can be postponed on a showing of good cause if the judge is willing. The third report is due at the end of the calendar year.

When your authorization to record expires you must provide the prosecutor with the information needed to complete the reports. In King County the prosecutor is responsible for preparing the reports and presenting them to the judge.

The prosecutor needs the following information to complete the first two reports:

1. Addresses for yourself, your approving commander, the investigative target, and any other persons whose communications were covertly intercepted or recorded;
2. Description of intercept location (s) - single family residence, apartment, business, police precinct, etc.;
3. Statement whether recordings were made. If so, identify the dates of the recordings and the persons recorded; and
4. Statement whether the recordings resulted in arrest.

If you want to delay the reporting to the end of the 30 days, discuss this with the prosecutor.

If there are grounds to ask the judge for additional delay (beyond the 30 days) in notifying

the subject, the following additional information is needed:

A reasoned statement showing good cause why the inventory should be delayed.
This statement should, at a minimum, contain the following:

- a) Facts: The number of recordings, whether the subject met with or knows the consenting person, whether the recordings developed evidence of a crime or crimes;
- b) Whether the notice will place the consenting person at risk of threat or injury;
- c) Whether the notice will place the ongoing effectiveness of your investigation at risk; and
- d) When you anticipate concluding the investigation.

XXII. APPENDIX B: PREPARATION FOR THE CONVERSATION

A. General

- [First and foremost, work to the consenting person's (CP)⁷ comfort level. You can make suggestions, but the CP ultimately has to handle the conversation and has to be comfortable doing it. Otherwise, the suspect may be tipped off and may give you "negative evidence" on tape.
- [Often the CP will have thoughts about what to say - listen carefully - the CP is also telling you what s/he will be most comfortable with and therefore how to maximize the potential for a successful conversation.
- [Don't over prepare the CP.
- [Especially if your CP is a child, let him/her use his/her own language.
- [Maintain direct control over the call or contact if possible - Maintain eye contact with the CP if possible, and have a way to overhear the conversation between the CP and the suspect. Use a telephone extension or an audio transmitter. If the contact is to be made by telephone, you may want to be in a position to write notes to the CP during the conversation.

B. Opening - Starting the Conversation

Before the call, discuss with the CP how s/he will open the conversation with the suspect. This should be a plausible explanation for the contact that puts the suspect at ease.

1. Take something out of victim's real life if possible - something the suspect is aware of that can be expanded on.

For Example, in a child rape case, suspect knows that his victim has to get a physical because he is trying out for football. Victim can use that fact, combined with asserted fear, to convince suspect that he (the victim) had contracted AIDS from the suspect. This will likely draw an incriminating reaction from the suspect.

2. Investigators can also create a plausible reason for the conversation. Here are a few examples:
 - a. Child victim was watching a television show (specify) where they talked about (situations similar to your case). Example: "I was watching Oprah today and they talked about baby sitters' touching the kids."
 - b. CP knows suspect from prior contact and now wants to work with suspect in carrying out criminal activity.

⁷Some consenting persons will be victims; others will be informants, accomplices, or witnesses, such as parents, school counselors, friends, etc. Use herein of the term "consenting person" or "CP" refers to all these consenting persons.

- c. Victim says she has been having bad cramps; mom took to doctor; doctor thinks she's been having sex; mom was there; therefore, victim has to tell mom that she's been having sex with the suspect because mom thinks she's been having sex with boys at school. "I've got to tell her we've [specify the activity]."

C. Middle - Developing The Facts, Drawing Out Suspect, Dealing With Suspect Questions

Give the CP a way to draw out the suspect - ask questions and follow up on answers. Prepare the CP for the suspect's questions. Examples follow:

1. Developing the Facts. Specificity here is a must. Focus on the crime elements.

- a. **Victim CP** can talk about what s/he thinks or how s/he feels when the suspect [specify the act].

Examples:

"It's gross/bad, especially when you [specify the activity]."

"[Specify activity] seems risky, what have you done to minimize the risk?"

"Do you think I like(d) it when you [specify the activity]?"

- b. **Witness CP** can sometimes be more pointed - draw out what, when, who long, whether suspect has ever done it to anyone else, why. This CP should avoid stating the facts in order to make suspect state them.

Example: "I know what [victim] told me but I need to hear it from you. I want to know what to expect when [victim goes to doctor or something similar]. I want to know the truth now so I don't have to hear it in front of someone else." Follow up with: "What you are saying doesn't go with what [victim] told me."

2. Drawing out the suspect.

- a. Tell the CP to give the suspect time to talk. Don't interrupt. Pause - an uncomfortable suspect will talk to fill the silence.
- b. Elicit a promise. "Promise you won't do [specify act] any more."
- c. Ask why. "How come you did [specify act] to me?"

3. Dealing with suspect questions.

- a. The suspect may ask where the CP is, where members of the CP's household are, whom the CP has already told. The CP should be prepared with plausible responses.
- b. Prepare CP for the possibility that, unknown to police and the CP, the suspect knows that a disclosure has been made. How will the CP respond to a suspect assertion that the victim has already disclosed?

D. Wrapping Up - Time For Confrontation

Have a plan for getting out of the conversation.

1. Directly confront.

- a. Victim: "I'll report you if you ever do [specify activity] again. Will I need to do that?"
- b. Non-victim witness: Get pointed - "Did you [specify the activity]?"

2. End the conversation. Give the CP a way to end the conversation.

Example: "I gotta go, my dad just came in."
"I have an appointment..."

E. Tape Preservation & Transcript Preparation

The recording must be preserved until the statute of limitations expires, or the trial and all appeals have run their course, whichever comes first.

- 1. Break the tabs on the original tape cassette.
- 2. Make several copies and place the original in evidence.
- 3. Using a copy, as soon as the recordings have concluded, have transcripts prepared. When you get the transcript back, immediately review it, using the recording to assist you. Fill in anything that is missing and correct all errors, then have the final transcript prepared.

F. Investigative Use of the Tape

The value of these recordings is not limited to their presentation to a jury. They can also be very effectively used during suspect interrogations.

For use during suspect interrogations:

- 1. Conduct a complete interview first, lock the suspect into his/her story.
- 2. Only after locking the suspect into his/her story, advise him/her that you have a recording.
- 3. Play all or part of it.
- 4. Re-interview.

XXIII. APPENDIX C: ENTRAPMENT; POLICY ISSUES AND INVESTIGATIVE TOOLS AVAILABLE FROM THE PROSECUTOR'S OFFICE

A. Entrapment Defense - RCW 9A.16.070

1. It is a defense that:
 - a. the criminal design originated in the mind of law enforcement officials, or any person acting under their direction, and
 - b. the actor was lured or induced to commit a crime which, the actor had not otherwise intended to commit.
2. Merely affording the actor an opportunity to commit a crime, which the actor had not otherwise intended to commit, does not constitute entrapment.
3. However, public policy must be considered in addition to the technical requirements of the statute. If you overreach you will lose.
4. Because each undercover encounter is unique there is no "entrapment proof" script. That said, the following are important rules that will prevent entrapment defense problems.
 - a. **NEVER, EVER, TELL OR ENCOURAGE A SUSPECT TO COMMIT A CRIME.** If the suspect expresses reluctance to complete a previously planned criminal act **back off** and consult with the prosecutor.
 - b. **DISTINGUISH BETWEEN POLICE CONTROLLED CRIME VERSUS CRIMINAL ACTIVITY THE POLICE ALLOW TO OCCUR.** As a general rule, detectives should let the suspect initiate all contacts. Suspects, not investigators, should by their words and actions initiate the crimes and show their interest in and agreement to the crimes. Do not badger the suspect if the suspect loses interest in the criminal activity. Don't order things that are not already contraband.
 - c. Whenever possible have at least two undercover detectives present during contacts with the suspect (and informant). This may not be possible at the beginning but should occur as soon as possible thereafter. This provides corroboration for the undercover's accounts of the contacts with the suspects.
 - d. Detectives should IMMEDIATELY document ALL transactions and the details of ALL conversations with

potential defendants. Even though short encounters may seem unimportant at the time they may take on unanticipated significance at trial.

- e. Avoid using the confidential informant as a *transactional witness*. Paid informants are difficult to control, create almost automatic entrapment issues, and have no credibility in the eyes of a jury.
- f. Obtain rap sheets as soon as possible for all suspects with whom you deal. A fact-finder is much less likely to believe entrapment if the suspect has prior convictions for the same offense.
- g. Use other resources at your disposal to ensure the target is a worthy target: Witness Interviews; Intelligence; Surveillance; Public records (business licenses, incorporation papers, utilities) bank records, telephone records, insurance records, etc.

B. Using the Prosecutor's Expertise

- 1. Special evidence gathering tools that the prosecutor can help you use:
 - a. **Inquiry Judge** - RCW 10.27-A **secret judicial proceeding** that allows prosecutors to obtain evidence, from witnesses and/or records, upon a showing that the prosecutor has **reasonable suspicion** to believe that criminal activity is occurring within the jurisdiction.
 - (1) Excellent means for obtaining records from third parties, ...i.e. banks, utilities, businesses, phone companies, to document reasonable suspicion and build probable cause, without alerting suspects in undercover operation.
 - (2) Usually limited in its use with witnesses. You don't usually need it for cooperating witnesses and it is unlikely a hostile witness would abide by the secrecy requirements.
 - (3) This tool is only available to the prosecutor prior to the filing of criminal charges.
 - b. **Court Authorized Wires** - RCW Chapter 9.73: Unique statutory scheme. The portion of the statute that is pertinent to undercover work is the section that allows for court authorized recordings of conversations with suspects if specific statutory requirements are met. *See Electronic Surveillance In Washington*, by the King County Prosecutor's Office, Fraud Division (206) 296-9010, which details the specific requirements.
 - c. Legal papers and requirements for use of other forms of electronic

surveillance, such as pen registers, trap and trace, video surveillance, radio transmitters, infrared devices, GPS technology, e-mail, voice mail

2. For the most effective use of the above tools and the best outcome make the prosecutor part of the team.
 - a. Involve a prosecutor early to participate in discussion of approach and objectives and to advise on policy. Keep prosecutor informed and involved as case progresses.
 - b. Special Operations Function-Fraud Division - The Fraud Division of the King County Prosecutor's Office has experienced deputies who are responsible for assisting investigators during the case development phase. You only need to call to obtain help. (206) 296-9010.

XXIV. APPENDIX D - US DOJ SUMMARY CHART ON INTERCEPTING WIRE AND ELECTRONIC COMMUNICATIONS

	Voluntary Disclosure Allowed?		Mechanisms to Compel Disclosure	
	Public Provider	Non-Public Provider	Public Provider	Non-Public Provider
Basic subscriber, session, and billing information	Not to Gov't, unless § 2702(c) exception applies [§ 2702(a)(3)]	Yes [§ 2702(a)(3)]	Subpoena; § 2703(d) order; or search warrant [§ 2703(c)(2)]	Subpoena; § 2703(d) order; or search warrant [§ 2703(c)(2)]
Other transactional and account records	Not to Government, unless § 2702(c) exception applies [§ 2702(a)(3)]	Yes [§ 2702(a)(3)]	§ 2703(d) order or search warrant [§ 2703(c)(1)]	§ 2703(d) order or search warrant [§ 2703(c)(1)]
Accessed communications (opened e-mail and voice mail) left with provider and other stored files	No, unless § 2702(b) exception applies [§ 2702(a)(2)]	Yes [§ 2702(a)(2)]	Subpoena with notice; § 2703(d) order with notice; or search warrant [§ 2703(b)]	Subpoena; ECPA doesn't apply [§ 2711(2)]
Unretrieved communication including e-mail and voice mail (in electronic storage more than 180 days)	No, unless § 2702(b) exception applies [§ 2702(a)(1)]	Yes [§ 2702(a)(1)]	Subpoena with notice; § 2703(d) order with notice; or search warrant [§ 2703(a,b)]	Subpoena with notice; § 2703(d) order with notice; or search warrant [§ 2703(a,b)]
Unretrieved communication including e-mail and voice mail (in electronic storage 180 days or less)	No, unless § 2702(b) exception applies [§ 2702(a)(1)]	Yes [§ 2702(a)(1)]	Search warrant [§ 2703(a)]	Search warrant [§ 2703(a)]

§ references are to Title 18, U.S. Code.

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